

Reflection on the Past 20 Years and Future of Patent Court

Woosoo KIM, Boohan KIM, Hosan LEE, Kisu KIM*

Table of Contents

I. Introduction	IV. Status of Case Filing and Handling
II. Twenty-year History since Establishment	1. Case filing
1. Patent trial before the establishment of the Patent Court	가. Number of cases filed
2. Historical background of the patent trial system reform	나. Trends in cases filed
3. Amendments to Court Organization Act and Patent Act and unconstitutionality decision by Constitutional Court	2. Case handling
4. Establishment of Patent Court and afterwards	가. Number of cases handled
III. Institutional Improvement of Patent Court	나. Decision and revocation rate of administrative decision
1. Establishment of physical and institutional basis for efficient, fair and expeditious processing of IP cases	다. Handling period
2. Strengthening of expertise	라. cross-border cases
3. Internationalization of IP litigation and IP Hub Court	V. Future Challenges of Patent Court
	1. Strengthening of hearing on IP disputes and maturing of decision
	2. Internationalization and specialization of Patent Court
	3. Further expansion of exclusive jurisdiction including criminal cases
	【Appendix I】 Statistics of Patent Court
	【Appendix II】 Two Decades of Major Decisions

* Presiding Judge Woosoo Kim of the Patent Court took charge of the overall planning and supervision as well as Parts I and V, Judge Hosan Lee took charge of Parts II and III, Judge Kisu Kim took charge of Parts IV and Appendix I, and District Court Presiding Judge Boohan Kim took charge of Appendix II respectively.

I . Introduction

The Patent Court of Korea was established on March 1, 1998 at the level of high court with nationwide jurisdiction in order to realize the spirit of the Patent Act designed to protect intellectual property and ultimately facilitate the development of science and technology as an independent IP-specialized court. The Patent Court has the exclusive jurisdiction over suits against the decisions of KIPO (the Intellectual Property Trial and Appeal board, "IPTAB"), and since January 1, 2016 the jurisdiction over appeals against district court decisions has been conferred to the Patent Court, making the Patent Court truly specialized in patent and other intellectual property rights. As a result, the Patent Court is responsible not only for rendering decisions on highly sophisticated factual and legal disputes in the areas of science and technology but also for taking the lead in resolving civil appeals relating to IP rights.

With the amendments to the Court Organization Act pertaining to the establishment and operation of the International Division, a specialized division that allows oral arguments in a foreign language, on December 12, 2017, effective from June 13, 2018, the Patent Court stands at the starting point for taking the lead in making decisions on international disputes related to intellectual property rights including patent and resolving them in a reasonable and smooth manner and is in charge of carrying out associated duties and roles.

Now that the Patent Court celebrates its 20th anniversary, the job entrusted on the Court nationally and internationally is significant: resolving IP-related disputes fairly and expeditiously as a specialized court that matches its slogan of "where creativity meets fairness" and acting as an authoritative body in global IP dispute resolution.

Going forward, the Patent Court should seek efficiency and reasonableness in the IP-related litigation system including the suits against administrative trial decisions and civil actions relating to specific IP rights based on the understanding that the Court should play a central role in resolving national and international IP related disputes while improving the quality of trials. At the same time, efforts to strengthen trial globalization and expertise should be made

in a consistent manner. It is time for the Patent Court to carry out tasks and responsibilities that allow the Court to become an international IP-specialized court in line with the Court of Appeals for the Federal Circuit (CAFC) and the United Patent Court (UPC).

II. Twenty-year History since Establishment

1. Patent trial before the establishment of the Patent Court*

On October 5, 1946, the 1946 Patent Act was enacted and promulgated pursuant to Order No. 91 of the US Martial Law. As a result, the Patent Act, Utility Model Act and Design Act among Japanese laws on industrial property rights were all abrogated, which had been implemented in Korea since the Japanese colonial rule, and the former laws on trademark were also abrogated as the Trademark Act was enacted and promulgated via Act No. 71 on November 28, 1949.

The 1946 Patent Act allowed trial at the Tribunal and the Board of Patent Appeals and Interferences (BPAI) under the trial division of the Patent Bureau. Accordingly, the Tribunal took charge of inter partes cases such as scope of rights confirmation and invalidation cases, while the Board of Patent Appeals and Interferences took charge of appeals against inter partes cases and administrative trial on rejections. Appeals to the Supreme Court were allowed only when the parties claimed unlawfulness of the administrative trial decisions by the Board of Patent Appeals and Interferences.

On December 23, 1961, the Patent Attorney Act was enacted via Act No. 864 while abrogating the "Enforcement of the Patent Attorneys Act in Chosun," which was enacted as Imperial Order No. 9 in April 1920. On December 31, 1961, the Patent Act that separated provisions of utility model and trademark into independent laws was enacted and promulgated via Act No. 950, each of which was enacted and promulgated via Act No. 952 and Act No. 951 respectively.

* References include 「Court History」 written by the National Court Administration (1995) and 「A Historical Analysis of Korean Patent Act」 (2007) written by KIPO.

Afterwards, laws relating to industrial property including the Patent Act, the Utility Model Act, the Design Act, and the Trademark Act were completely revised in 1973. However, appeals were still allowed to be made to the Supreme Court only when the administrative trial decisions by the Board of Patent Appeals and Interferences violated the law, and the Supreme Court remained as the sole and final authority rendering a judicial decision over the matter.

2. Historical background of the patent trial system reform

The patent trial system in Korea had maintained a special administrative litigation system for almost half a century since the enactment of the 1946 Patent Act consisting of two-stage administrative proceeding, first by the Korean Intellectual Property Office (KIPO) and then the Board of Patent Appeals and Interferences, with the Supreme Court as the last resort. However, the system had a major flaw in that, even though the dispute on the patent right concerns the specialized field of science and technology, it is basically a legal dispute and therefore the lack of an opportunity for a fact-finding trial violates a party's right to trial under the Constitution. Provision of opportunity for fact-finding trials in patent disputes was a common trend in advanced nations. In addition, the reversal rate of decisions made at the Board of Patent Appeals and Interferences of KIPO was significantly higher than that of other administrative cases, which revealed the inherent limitation of the patent trial system at the time.

The Supreme Court, on August 25, 1993, requested to the Constitutional Court on the grounds that Article 186(1) of the old Patent Act violated the Constitution (Supreme Court Decisions 98Ku1, 2, 4). At the time, the question was raised whether a judge who is a legal expert would be able to fully understand the technical content and made an accurate decision on requirements for patent registration such as novelty and inventive step when fact-finding trials on patent cases are conducted by the court. Back then, the Supreme Court studied cases of advanced nations including the Bundespatentgericht (Federal Patent Court of Germany), CAFC, and the specialized

Reflection on the Past 20 Years and Future of Patent Court 5

division of the Tokyo High Court (the forerunner of the Intellectual Property High Court, which was established as a special branch of the Tokyo High Court on April 1, 2005) and exchanged opinions with KIPO and the Patent Attorneys' Association.

By accepting the recommendations of the Judicial Development Committee (a national judicial reform organization established on November 3, 1998 consisting of 32 members representing law, academia, the National Assembly, journalism and social entities) based on the decision of the Conference of Supreme Court Justices, the Supreme Court submitted its amendment bill of the Court Organization Act to the National Assembly on April 16, 1994, taking the form of legislative proposal. The bill allowed appeals to the Seoul High Court against the decision made at the Board of Patent Appeals and Interferences of KIPO, which could then be appealed to the Supreme Court. KIPO, for its part, proposed to amend the Court Organization Act on July 1, 1994 through the Korea Patent Attorneys' Association, which introduced the establishment of the Patent Court, the adoption of the judicial technical examiners system, and the installation of the Intellectual Property Trial and Appeal Board (IPTAB).

3. Amendments to Court Organization Act and Patent Act and unconstitutionality decision by Constitutional Court

After some discussion over the submitted amendment proposals by the Supreme Court and the KIPO, the following was agreed on July 8, 1994:

① By March 1, 1998, the Patent Court at the level of high court consisting of four to six panels would be established to deal with industrial property rights of all kinds but the jurisdiction would be limited to revocation cases of administrative decisions.

② Measures should be sought to secure highly skilled professionals and retain them for a long time at the Patent Court. Those eligible include allocate trainees who have finished the Judicial Research & Training Institute course and have science and engineering backgrounds, judges who are specialized in or have dedicated to handling industrial property cases, and lawyers who have engaged in patent practice for many years.

③ KIPO would be advised to deploy nine to eleven judicial technical

examiners to the Patent Court who participate in hearings and trials relating to industrial property rights at the Patent Court and grant them the power to seek clarification from the parties on technical matters and state their opinions for judgment.

④ From March 1, 1998 with the establishment of the Patent Court, the Tribunal of KIPO shall be incorporated into the Board of Patent Appeals and Interferences to establish the IPTAB, which provides a single-level administrative trial system. Power of attorney of the patent attorneys continue to be protected in both administrative and judicial proceedings under the newly established system.

As a result, the amended Court Organization Act stating that the high-court-level Patent Court is in charge of patent litigation in the first instance and judicial technical examiners may participate in the hearings and trials was decided at the National Assembly on July 24, 1994, promulgated on July 27, 1994 and took effect on March 1, 1998. In addition, as the amendments to the Patent Act, the Utility Model Act, the Design Act and the Trademark Act were promulgated on January 5, 1995, the Patent Court was conferred with exclusive jurisdiction over cases seeking revocation of administrative decisions rendered at the IPTAB, a newly established tribunal which incorporates the Tribunal and the Board of Patent Appeals and Interferences of KIPO, and appeals of the Patent Court decisions are brought to the Supreme Court. Meanwhile, the Constitutional Court declared on September 28, 1995 unconstitutional the appeal by the Supreme Court (92Heonga11, 93Heonga8, 9, 10 (consolidated) en banc).

4. Establishment of Patent Court and afterwards

On March 2, 1998, the Patent Court embarked on its historic journey with three court divisions and one administrative bureau with two divisions. On March 1, 2000, the Court relocated to Daejeon in order to pursue a balanced development between the metropolitan city of Seoul and other provinces. Synergistic effects expected from the networks with the KIPO, the Daedeok Science Town, where various government-funded research institutes and laboratories of private companies are concentrated, and educational institutions

Reflection on the Past 20 Years and Future of Patent Court 7

located in Daejeon such as the Korea Advanced Institute of Science and Technology (KAIST) were also considered.

At the time of relocation to Daejeon, the Patent Court shared the court building with the Daejeon High Court and the Daejeon District Court. Subsequently, the Patent Court moved to the current 11-story building (10 floors above ground and 1 floor underground) in the Court Complex on September 1, 2003, expecting future increase in the number of the judicial panels due to the expansion of jurisdiction to include civil appeals along with the rise in IP disputes.

On November 12, 2015, amendments to the Civil Procedure Act and the Court Organization Act passed the National Assembly's plenary session. As a result, civil actions relating to IP rights have come under the jurisdiction of five district courts including the Seoul Central District Court, Daejeon District Court, Daegu District Court, Busan District Court, and Gwangju District Court, with their appeals put under the exclusive jurisdiction of the Patent Court. Therefore, the Patent Court has taken charge of appeals in civil actions relating to IP rights as well as suits against the administrative trial decisions, strengthening trial expertise and creating an opportunity to resolve inconsistency and unreasonableness in decisions and delays in litigation arising from the previous two-track jurisdiction over civil and administrative cases relating to IP rights.

From its establishment on March 2, 1998 to 2003, the Patent Court consisted of three court divisions and subsequently expanded to four or five court divisions as shown in the table below in order to accommodate the increasing number of cases. As of 2018, the Court consists of five court divisions totaling 17 judges composed of one Chief Judge and five Presiding Judges.

	1998	1999	2000	2001	2002	2003	2004	2005	2006	2007
Number of court divisions	3	3	3	3	3	3	4	4	5	4
Number of judges*	10	10	10	10	10	10	10	13	21	17
	2008	2009	2010	2011	2012	2013	2014	2015	2016	2017
Number	4	4	4	4	5	5	4	4	5	5

of court divisions										
Number of judges	17	17	14	14	16	16	13	13	16	17

Meanwhile, since its establishment, the Patent Court has expanded the number of judicial technical examiners and judicial research officers consistently in order to strengthen expertise. As of today, as shown in the table below, 15 judicial technical examiners from each special field deployed by the KIPO, two judicial technical examiners and five judicial research officers hired by the Patent Court serve in the Patent Court.

Field		Composition	
		Judicial technical examiner*	Judicial research officer
Machine	Machinery	5	1
	Facility	1	
Chemistry	Chemical	3	1
	Drugs	3	2
	Agriculture	1	
Electricity	Electrics	3	1
	Telecom	1	
Total		17	5

III. Institutional Improvement of Patent Court

1. Establishment of physical and institutional basis for efficient, fair and expeditious processing of IP cases

Since the opening, the Patent Court has expanded the number of small courtrooms available for each court division and has been committed to fair and expeditious trial through differentiated case management by disputed issues and dedicated oral and intensive hearing.

In 2007, the Patent Court started providing electronic litigation service for the

* [각주 - 번호] Since 2016, in accordance with Article 10 of the Court Organization Act, two High Court Judges have been assigned to the Patent Court. The number went up to five in 2018.

* Two of the judicial technical examiners are fixed-term public officials in general service (class 5), the rest judicial technical examiners are deployed from the KIPO, and the judicial research officers are all fixed-term public officials in general service (class 5).

first time among Korean courts, promoting convenience of the parties and their agents and enabling the court to proceed more quickly and efficiently. As of 2016, 96.9% of the total 977 cases proceeded using the electronic filing system.

In addition, the Patent Court enacted and published Guidelines of Civil Practice and Procedure and Guidelines of Revocation of Administrative Decision on March 16, 2016 and August 25, 2016 respectively. These developments have provided the parties with predictability of the Patent Court's trial procedure, an opportunity to make better preparation for pleading while laying a foundation for active case management and intensive hearing by establishing rules for issue-by-issue hearings.

In addition, the Patent Court adopted the "Internal Regulation on Patent Court Mediators" to establish a civil mediation division, appointing mediators consisting of legal and technical experts given the nature of patent disputes and forwarding cases to mediation prior to the first trial date, thereby minimizing litigation costs and promoting dispute resolution at an early stage. In particular, in order for the mediation to proceed without forcing the parties, agents and mediators in the metropolitan area to travel to the Patent Court, the court offers "Delegated Mediation System", under which mediators of the Patent Court carry out mediation at Smart Work Center in the Seoul Central District Court. It also signed an MOU with IIPAC (International IP ADR (Alternative Dispute Resolution) Center), a specialized IP dispute resolution agency, to carry out mediation in coordination with external organizations.

2. Strengthening of expertise

In order to secure professional manpower, the Patent Court, since its establishment, has placed judges who have majored in science, engineering and intellectual property rights, judges who have a history of exclusively handling intellectual property matters, and judges who served as attorneys or patent attorneys in the field for many years, and has been making progressive efforts to secure them for longer period of time.

In order to further strengthen the technical expertise, the Court has

accommodated a total of 17 judicial technical examiners who are deployed by the KIPO with long experiences of handling patent cases there and hired its own judicial technical examiners and five judicial research officers. These examiners and officers have Ph.D., patent attorney's license, lawyer's license, or history of working at relevant research institutes. Their areas of expertise are widely distributed from machinery, facilities, chemistry, medicine, agriculture, electronics to communications.

In addition, the Patent Court has formed the Judicial Administration Advisory Committee and the Scientific Advisory Committee to seek objective and specialized advice from external experts and facilitated expert witnesses, technical advisors, and appraisal while providing opportunities for the inventors to make a statement in the proceedings upon the parties' request.

Along with these efforts, the Patent Court established a special division in March 2015 to deal with cases that hold a significant importance in society or that may yield decisions distinct from the traditional legal principles or practices. The special division presided over two cases on invalidation of patent term extension in pharmaceutical product were referred to the special division in August 2016 for the first time and rendered its decision on March 16, 2017. Both cases were confirmed as final as the Supreme Court dismissed the appeals on November 29, 2017.

3. Internationalization of patent litigation and IP Hub Court

With IPR cases are internationalized, the proportion of cases in which one party is a foreigner (or foreign corporation) has steadily increased. Moreover, Korea has become the fifth largest patent filing country in the world after the U.S., EU, Japan, and China, and its patents involve major technologies that lead the world's high-tech industries. The need to keep up with the global trend in dispute resolution has surged in the areas of trademark and design as well.

In response to such demand, the Judicial Administration Advisory Committee proposed to develop a leading IP Court at a global level in April 2014, and the Supreme Court established an IP Court master plan, which aims to develop the

Patent Court of Korea a preferred court in global IP litigation and, in the long term, to establish an Asian patent dispute resolution organization in Korea based on the elevated international status of the Patent Court of Korea.

In this regard, the Court Organization Act was partly amended on December 12, 2017 to include "proceedings in foreign language and the establishment of dedicated court" in order to support the establishment and operation of the International Division, and this amendment is scheduled to be implemented on June 13, 2018. For its part, the Patent Court has been working on drafting practice directions, secured a professional interpreter and published a Korea-English / English-Korea IP law dictionary.

As part of the efforts to facilitate IP Hub Court and the International Division, the Patent Court established the International IP Law Research Center on March 1, 2017, secured full-time researchers and established a network of national and international experts in order to lay a foundation for continuous academic research and database development.

In addition, in order to promote international exchange for IP Hub Court, the Patent Court has hosted an annual international conference attended by chief judges, judges, and lawyers of intellectual property courts of various countries in the world, where participants exchange opinions on regulations on intellectual property law and litigation practices and discuss the ways to achieve harmony and cooperation. The court has also dispatched judges to various international conferences or intellectual property specialized courts in order to read key trends in the global IP litigation cases.

In addition, the Patent Court has published "IP Law Journal" which introduces research results of the IP Litigation Practice Research Committee and summary of major decisions in English every year since 2014 and issued "Patent Court Decisions" in English every year since 2015 which include selected decisions rendered by the Patent Court in order to disseminate the Court's decisions abroad.

IV. Case filing and processing

1. Case filing

A. Number of cases filed

From March 1, 1998 to December 31, 2017, a total of 20,416 cases seeking revocation of administrative decision were filed with the Patent Court (Table 1).

By type, 42% or 8,503 of the total cases filed were patent cases, 11% or 2,346 were utility model cases, 9% or 2,000 were design cases, and 37% or 7,567 were trademark cases (Table 3 or 6). Meanwhile, during the same period, ex parte cases filed against the KIPO Commissioner were 5,337 accounting for 26% of the total cases filed, while inter partes cases filed against patentees or other stakeholders were 15,039 accounting for 74% of the total cases filed (Table 2).

In the meantime, from 2016 when civil appeals started to be filed with the Patent Court with the expansion of jurisdiction to December 31, 2017, a total of 378 cases of civil appeal were filed with the court (Table 10).

B. Filing trends

The number of the new cases filed each year began to surge from 2004 and has continued to increase until 2011. While the number of revocation actions since 2012 had been somewhat decreasing, the total number of filing has increased as civil appeals started to come to the Patent Court since 2016 as a result of the jurisdictional change. In 2017, a total of 1,035 cases were filed including revocation cases and civil appeals.

By type of the new cases filed every year, the number of patent cases did not exceed 200 from 1998 to 2003 then surged from 2004 to 516 in 2017, and its proportion of the total cases filed from 1998 to 2003 did not exceed 30% but has soared from 2004 reaching 61% in 2017. On the other hand, the number of utility model cases have been declining from its peak in 2005, and the number of design and trademark cases have been steadily decreasing from their peak in 1999, one year after the establishment of the Patent Court, with commensurating fall in its proportion to the total number of cases filed (Table 4, 5, 6).

The number of civil appeals increased from 112 in 2016 to 183 in 2017 (Table 10).

Reflection on the Past 20 Years and Future of Patent Court 13

As a result, the increase in new cases is due to a significant increase in the number of patent and civil appeals which require more time and effort to handle compared to design and trademark cases, meaning heavier workload on the Patent Court.

2. Case processing

A. Number of cases processed

From March 1, 1998 to December 31, 2017, a total of 20,102 cases were handled by the Patent Court including 19,934 revocation actions and 168 civil appeals (Table 1, 10).

By type of the revocation cases, during the same period, 41% or 8,130 were patent cases, 12% or 2,339 were utility model cases, 10% or 1,978 were design cases, and 38% or 7,487 were trademark cases (Table 3 or 6).

B. Process result and revocation rate of administrative decision

Out of the total cases handled from March 1, 1998 to December 31, 2017, about 81% or 16,188 cases were concluded by decision while the remaining cases were withdrawn, deemed as withdrawn, or closed by order to dismiss the complaint (Table 1, 10). In addition, out of the decisions rendered in revocation cases during the same period, IPTAB decisions were revoked as a whole in 4,620 or 28.7% cases (Table 7-2). By type, revocation rate of administrative decision on utility model case topped the list with 33.4% followed by design case with 31.9% while patent case was at the bottom with 26.9%. The revocation rate of administrative decision fluctuates at around 30% with the highest at 34.7% in 1998 and the lowest at 24.5% in 2013 (Table 7-2).

C. Processing time

93.1% of revocation cases from March 1, 1998 to December 31, 2017 was handled within a year from the date of filing, while 6.3% took one to two years and only 0.5% took more than two years (Table 8-1).

By type, patent and utility model classified as technical cases in practice were found to take more time than non-technical cases such as trademark and

design (Table8-2). The average handling period by year increased since the establishment of the Patent Court, peaked in 2002, declined from 2004 to 2012 and started to increase again from 2013. The increase from 2013 seems to be due to strengthened factfinding process leading to more frequent use of expert witnesses, technical advisors, and appraisals in the inventive step determination.

D. Cross-border cases

Out of the cases handled from January 1, 1999* to December 31, 2017, cases in which either party is a foreigner including corporations (hereinafter referred to as "접외사건") run to 5,751 accounting for 29.8% of the total cases handled (Table 9).

By type, trademark case topped the list with 44.5%, patent case was at 30.3%, utility model case was at a mere 1.5% and design case was at 4.9% of the total cross-border cases handled during the same period. By country, the U.S. topped the list at 35.3%, followed by Japan at 20.3%, Germany at 7.3%, France at 6.1%, the U.K. at 4.3%, and Switzerland at 4.0% of the total cross-border cases.

V. Future Challenges of Patent Court

1. Strengthening of hearing on IP disputes and maturing of decision

The Patent Court should make sure that a hearing is carried out in a fair and thorough manner and that the decision of the case is sophisticated and distinguished. In other words, from the procedural point of view, it is necessary to improve the Guidelines of Practice and Procedure of Revocation action and Guidelines of Civil Appellate Practice and Procedure in a more efficient and reasonable way, and based on this, the Court should conduct the hearing more fairly and thoroughly. Also, from the substantive point of view, efforts should be made to render quality decisions that match the global standard.

* The figure does not include cross-border cases handled from March 1 to December 31, 1998 due to lack of data.

To that end, judicial technical examiners and judicial research officers should carry out prior investigation and review on related science and technology thoroughly, and the judges should make sure that parties and those related to the case understand relevant science and technology and that the hearing on science and technology is conducted carefully and thoroughly at court with the help of technical advisors, expert witnesses and appraisals.

In the end, enhancement of hearing and excellence of decisions are the most important tasks upon the Patent Court, and all members of the Patent Court including judges need to devote their efforts and research to this end.

2. Internationalization and specialization of Patent Court

With the enforcement of the amendments of the Court Organization Act on June 13, 2018, the Patent Court must establish and operate the International Division. The most urgent task is to establish the foundation for the success of the Division such as promoting the expertise and excellence of the Patent Court to the international community by carrying out dedicated hearing and rendering quality decision on international cases.

About 30% of the cases filed with the Patent Court involve a foreign party, and materials on the standards for inventive step determination and criteria for trademark and others adopted by the courts of the US, Europe and Japan are submitted during the court proceedings from time to time. Under these circumstances, it is expected that the decisions on international cases rendered by the Patent Court will also be translated into foreign languages and used as reference for litigation and research in other countries.

Considering that the authority and reliability of decisions, especially in international cases, by the Patent Court depend on the competence, professionalism and fairness of the judges, it is necessary to promote measures and efforts consistently to strengthen the internationalization and specialization of the judges and judicial technical examiners who assist the trials.

3. Efforts to include criminal and other cases into the court's exclusive jurisdiction

As civil infringement suits are now under the exclusive jurisdiction of the Patent Court, infringement hearings and trials call for further efforts to fully establish the court's practice direction at an early stage while improving the existing guidelines in consideration of the unique and specialized nature of IP disputes and their efficiency.

In addition, procedures must be developed via further legislative efforts so that the court's exclusive jurisdiction would include appeals from motions such as preliminary injunctions, allowing the court to hear and adjudicate main claims and motions in a prompt and consistent manner.

In the long term, it would be necessary to pursue legislation that amends the level of trials and jurisdiction to ensure that the first-instance trials and appeals in criminal cases related to patent and other rights in addition to revocation of administrative decision and civil appeals are adjudicated by the Patent Court.

The current challenges of inconsistency and unreasonableness in decisions, delays in litigation, and waste of cost arising from jurisdictional separation as well as delays in industrial development due to insufficient protection of IP rights at an early stage all underscore the need for more exclusive jurisdiction of a specialized court to resolve IP disputes, that is, the Patent Court. Such efforts will and should be the foundation for the Patent Court of Korea to become the central and the most advanced court in the field of IP rights nationally and internationally for the next 10 to 20 years.

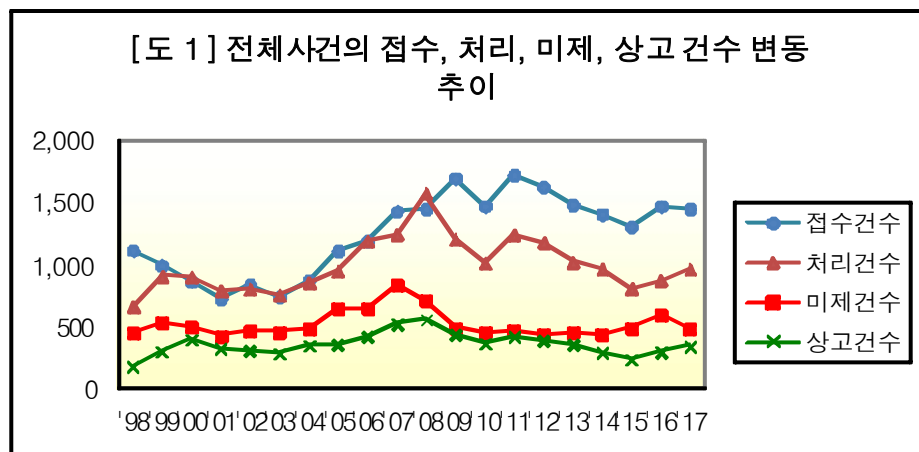
【Appendix I】Patent Court Statistics*

[Table 1] Annual status of revocation cases: filed, handled, unresolved, and appealed

Classifi- cation Year	Number of cases filed			Number of cases handled			Unresolved (rate of change)	Appeal (rate of appeal)
	Unresol- ved	New	Total (rate of change)	Decision	Others	Total (rate of change)		
1998		1,119	1,119	490	172	662	457	185 (37.8)
1999	457	995	1,452 (+29.8%)	707	206	913 (+37.9%)	539 (+17.9%)	304 (43%)
2000	539	866	1,405 (-3.2%)	756	149	905 (-0.9%)	500 (-7.2%)	400 (52.9%)
2001	500	726	1,226 (-12.7%)	660	136	796 (-12%)	430 (-14%)	330 (50%)
2002	430	843	1,273 (+3.8%)	679	123	802 (+0.8%)	471 (+9.5%)	309 (45.5%)
2003	471	749	1,220 (-4.2%)	652	106	758 (-5.5%)	462 (-1.9%)	290 (44.5%)
2004	462	878	1,340 (+9.8%)	695	161	856 (+12.9%)	484 (+4.8%)	355 (51.1%)
2005	484	1,115	1,599 (+19.3%)	754	192	946 (+10.5%)	653 (+34.9%)	360 (47.8%)
2006	653	1,192	1,845 (+15.4%)	1,010	181	1,191 (+25.9%)	654 (+0.2%)	425 (42.1%)
2007	654	1,429	2,083 (+12.9%)	1,025	223	1,248 (+4.8%)	835 (+27.7%)	528 (51.5%)
2008	835	1,449	2,284 (+9.7%)	1,254	316	1,570 (+25.8%)	714 (-14.5%)	562 (44.8%)
2009	714	983	1,697 (-25.7%)	1,000	203	1,203 (-23.4%)	494 (-30.8%)	443 (44.3%)
2010	494	978	1,472 (-13.3%)	817	195	1,012 (-15.9%)	460 (-6.9%)	368 (45.0%)
2011	460	1,257	1,717 (+16.6%)	1,026	217	1,243 (+22.8%)	474 (+3.0%)	422 (41.1%)
2012	474	1,154	1,628 (-5.2%)	946	238	1,184 (-4.8%)	444 (-6.3%)	397 (42.0%)
2013	444	1,040	1,484 (-8.9%)	795	229	1,024 (-13.5%)	460 (+3.6%)	362 (45.5%)
2014	460	948	1,408 (-5.1%)	712	253	965 (-5.8%)	443 (-3.7%)	296 (41.6%)
2015	443	864	1,307 (-7.2%)	620	193	813 (-15.8%)	494 (+11.5%)	241 (38.9%)
2016	494	979	1,473 (+12.7%)	724	155	879 (+8.1%)	594 (+20.2%)	303 (41.9%)
2017	594	852	1,446 (-1.8%)	757	207	964 (+9.7%)	482 (-18.9%)	349 (46.1%)
Total	10,062	20,416	30,478	16,079	3,855	19,934	10,544	7,229

* [Table 1]~[Table 9] are related to revocation action against administrative decision, and [Table 10] and [Table 11] are related to civil appeals.

- * Numbers in 1998 are based on data from March 1 to December 31, 1998, numbers from 1999 to 2007 are based on data from January 1 to December 31 of each year, the ratios are rounded off to the fourth decimal place. The same applies to the rest of the tables.
- * The newly filed 1,119 cases in 1998 include 434 cases transferred from the KIPO at the time of the opening of the Patent Court.
- * "Others" in the "number of cases handled" refer to the cases withdrawn, deemed as withdrawn or closed with the order to dismiss the complaint.
- * Percentage (%) in the cases "filed, handed and unresolved" is the rate of increase and decrease in numbers compared with those in the previous year.
- * Percentage (%) in the "appeal" is the rate of appeals out of all decisions.



[Figure 1] Changes in cases filed, handled, unresolved and appealed

cases filed

cases handled

cases unresolved

cases appealed

Reflection on the Past 20 Years and Future of Patent Court 19

[Table 2] Annual filing stats of inter partes and ex parte cases

Year	Category	Patent		Utility model		Design		Trademark		Total	
	Type	inter partes	ex parte	inter partes	ex parte	inter partes	ex parte	inter partes	ex parte	inter partes	ex parte
1998		138 (78.9%)	37 (21.1%)	220 (95.2%)	11 (4.8%)	145 (99.3%)	1 (0.7%)	471 (83.1%)	96 (16.9%)	974 (87%)	145 (13%)
1999		106 (60.2%)	70 (39.8%)	110 (90.2%)	12 (9.8%)	142 (97.3%)	4 (2.7%)	343 (62.3%)	208 (37.7%)	701 (70.5%)	294 (29.5%)
2000		92 (51.7%)	86 (48.3%)	102 (93.6%)	7 (6.4%)	105 (98.1%)	2 (1.9%)	305 (64.6%)	167 (35.4%)	604 (69.7%)	262 (30.3%)
2001		109 (61.9%)	67 (38.1%)	136 (98.6%)	2 (1.4%)	104 (98.1%)	2 (1.9%)	199 (65%)	107 (35%)	548 (75.5%)	178 (24.5%)
2002		153 (72.5%)	58 (27.5%)	139 (92%)	12 (8%)	97 (99%)	1 (1%)	261 (68.1%)	122 (31.9%)	650 (77.1%)	193 (22.9%)
2003		113 (71.5%)	45 (28.5%)	122 (96.8%)	4 (3.2%)	111 (98.2%)	2 (1.8%)	219 (62.2%)	133 (37.8%)	565 (75.4%)	184 (24.6%)
2004		197 (74.6%)	67 (25.4%)	160 (97.0%)	5 (3.0%)	99 (98.0%)	2 (2.0%)	239 (68.7%)	109 (31.3%)	695 (79.2%)	183 (20.8%)
2005		279 (67.7%)	133 (32.3%)	200 (94.8%)	11 (5.2%)	95 (94.1%)	6 (5.9%)	168 (43%)	223 (57%)	742 (66.5%)	373 (33.5%)
2006		367 (67.1%)	180 (32.9%)	164 (92.7%)	13 (7.3%)	79 (97.5%)	2 (2.5%)	253 (65.4%)	134 (34.6%)	863 (72.4%)	329 (27.6%)
2007		417 (62%)	256 (38%)	144 (89.4%)	17 (10.6%)	78 (91.8%)	7 (8.2%)	349 (68.4%)	161 (31.6%)	988 (69.1%)	441 (30.9%)
2008		438 (64.4%)	242 (35.6%)	151 (92.6%)	12 (7.4%)	93 (95.9%)	4 (4.1%)	316 (62.1%)	193 (37.9%)	998 (68.9%)	451 (31.1%)
2009		302 (67.8%)	150 (33.2%)	125 (94%)	8 (6%)	92 (98%)	2 (2%)	225 (74%)	79 (26%)	744 (75.7%)	239 (24.3%)
2010		351 (66.6%)	176 (33.4%)	68 (86.1%)	11 (13.9%)	92 (92%)	8 (8%)	210 (77.2%)	62 (22.8%)	721 (73.7%)	257 (26.3%)
2011		428 (67.0%)	211 (33.0%)	86 (92.5%)	7 (7.5%)	117 (91.4%)	11 (8.5%)	285 (71.8%)	112 (28.2%)	916 (72.9%)	341 (27.1%)
2012		386 (65.2%)	206 (34.8%)	74 (89.2%)	9 (10.8%)	66 (89.2%)	8 (10.8%)	260 (64.2%)	145 (35.8%)	786 (68.1%)	368 (31.9%)
2013		411 (71.5%)	164 (28.5%)	59 (95.2%)	3 (4.8%)	95 (96.0%)	4 (4.0%)	230 (75.7%)	74 (24.3%)	795 (76.4%)	245 (23.6%)
2014		310 (61.9)	191 (38.1)	39 (90.7)	4 (9.3)	69 (88.5)	9 (11.5)	237 (72.7)	89 (27.3)	655 (69.1)	293 (30.9)
2015		317 (72.0)	123 (28.0)	39 (88.6)	5 (11.4)	90 (90.9)	9 (9.1)	205 (73.0)	76 (27.0)	651 (75.3)	213 (24.7)
2016		453 (74.1)	158 (25.9)	24 (88.9)	3 (11.1)	74 (100)	0	212 (79.4)	55 (20.6)	763 (77.9)	216 (22.1)
2017		394 (76.4)	122 (23.6)	23 (82.1)	5 (17.9)	69 (94.5)	4 (5.5)	194 (82.6)	41 (17.5)	680 (79.8)	172 (20.2)
Total		5,761 (67.8)	2,742 (32.3)	2,185 (93.1)	161 (6.9)	1,912 (95.6)	88 (4.4)	5,181 (68.5)	2,386 (31.5)	15,039 (73.7)	5,377 (26.3)

* Percentage (%) of each item is the ratio of inter partes and ex parte cases out of total cases filed.

[Table 3] Annual status of patent cases: filed, handled, unresolved and appealed

Classification Year	Number of cases filed			Number of cases handled			Unresolved	Appeal (rate of appeal)
	Unresolved	New	Total	Decision	Others	Total		
1998		175 (15.6%)	175 (15.6%)	38 (21.7%)	22 (12.6%)	60 (34.3%)	115 (65.7%)	17 (44.7%)
1999	115 (25.2%)	176 (17.7%)	291 (20%)	100 (34.4%)	39 (13.4%)	139 (47.8%)	152 (52.2%)	42 (42%)
2000	152 (28.2%)	178 (20.6%)	330 (23.5%)	131 (39.7%)	25 (7.6%)	156 (47.3%)	174 (52.7%)	88 (67.2%)
2001	174 (34.8%)	176 (24.2%)	350 (28.5%)	171 (48.9%)	31 (8.9%)	202 (57.7%)	148 (42.3%)	78 (45.6%)
2002	148 (34.4%)	211 (25%)	359 (28.2%)	152 (42.3%)	35 (9.7%)	187 (52.1%)	172 (47.9%)	73 (48%)
2003	172 (36.5%)	158 (21.1%)	330 (27%)	154 (46.7%)	33 (10%)	187 (56.7%)	143 (43.3%)	75 (48.7%)
2004	143 (31.0%)	264 (30.1%)	407 (30.4%)	165 (40.5%)	48 (11.8%)	213 (52.3%)	194 (47.7%)	72 (43.6%)
2005	194 (40.1%)	412 (37%)	606 (37.9%)	206 (34%)	58 (9.6%)	264 (43.6%)	342 (56.4%)	98 (47.6%)
2006	342 (52.4%)	547 (45.9%)	889 (48.2%)	414 (46.6%)	72 (8.1%)	486 (54.7%)	403 (45.3%)	161 (38.9%)
2007	403 (61.6%)	673 (47.1%)	1,076 (51.7%)	504 (46.8%)	111 (10.3%)	615 (57.2%)	461 (42.8%)	263 (52.2%)
2008	461 (55.2%)	680 (46.9%)	1,141 (50.0%)	520 (45.6%)	169 (14.8%)	689 (60.4%)	452 (39.6%)	235 (45.2)
2009	452 (63.3%)	452 (63.3%)	904 (53.3%)	499 (55.2%)	117 (12.9%)	616 (68.1%)	288 (31.9%)	208 (41.2%)
2010	288 (58.3%)	527 (53.9%)	815 (55.4%)	409 (50.2%)	108 (13.3%)	517 (63.4%)	298 (36.6%)	169 (41.3%)
2011	298 (64.8%)	639 (50.8%)	937 (54.6%)	517 (55.2%)	115 (12.3%)	632 (67.5%)	305 (32.6%)	217 (42.0%)
2012	305 (64.4%)	592 (51.3%)	897 (55.1%)	512 (57.1%)	135 (15.1%)	647 (72.1%)	250 (27.9%)	209 (40.8%)
2013	250 (56.3%)	575 (55.3%)	825 (55.6%)	414 (50.2%)	123 (14.9%)	537 (65.1%)	288 (34.9%)	197 (47.6%)
2014	288 (62.6%)	501 (52.9%)	789 (56.0%)	408 (51.7%)	118 (15.0%)	526 (66.7%)	263 (33.3%)	177 (43.4%)
2015	263 (59.4%)	440 (50.9%)	703 (53.8%)	313 (44.5%)	109 (15.5%)	422 (60.0%)	281 (40.4%)	122 (39.0%)
2016	281 (56.9%)	611 (62.4%)	892 (60.6%)	379 (42.5%)	74 (8.3%)	453 (50.8%)	439 (49.2%)	169 (44.6%)
2017	439 (73.9%)	516 (60.4%)	955 (66.0%)	462 (48.4%)	120 (12.6%)	582 (60.9%)	373 (39.1%)	210 (45.5%)
Total	5,163	8,503	13,671	6,468	1,662	8,130	5,541	2,880

* Percentage (%) in the "filed, handled and unresolved" is the ratio of patent cases out of the total cases in the corresponding category.

* Percentage (%) in the "appeal" is the appeal ratio of patent cases out of the total decisions on patent.

Reflection on the Past 20 Years and Future of Patent Court 21

[Table 4] Annual status of utility model cases: filed, handled, unresolved and appealed

Classification Year	Number of cases filed			Number of cases handled			Unresolved	Appeal (rate of appeal)
	Unresolved	New	Total	Decision	Others	Total		
1998		231 (20.6%)	231 (20.6%)	74 (32%)	49 (21.2%)	123 (53.2%)	108 (46.8%)	28 (37.8%)
1999	108 (23.6%)	122 (12.3%)	230 (15.8%)	126 (54.8%)	29 (12.7%)	155 (67.4%)	75 (32.6%)	57 (45.2%)
2000	75 (13.9%)	109 (12.6%)	184 (13.1%)	91 (49.5%)	25 (13.6%)	116 (63%)	68 (37%)	57 (62.6%)
2001	68 (13.6%)	138 (19%)	206 (16.8%)	88 (42.7%)	21 (10.2%)	109 (52.9%)	97 (47.1%)	41 (46.6%)
2002	97 (22.6%)	151 (17.9%)	248 (19.5%)	121 (48.8%)	26 (10.5%)	147 (59.3%)	101 (40.7%)	59 (48.8%)
2003	101 (21.4%)	126 (16.8%)	227 (18.6%)	105 (46.3%)	23 (10.1%)	128 (56.4%)	99 (43.6%)	50 (47.6%)
2004	99 (21.4%)	165 (18.8%)	264 (19.7%)	130 (49.2%)	27 (10.2%)	157 (59.5%)	107 (40.5%)	68 (52.3%)
2005	107 (22.1%)	211 (19%)	318 (19.9%)	122 (38.4%)	48 (15.1%)	170 (53.5%)	148 (46.5%)	59 (48.4%)
2006	148 (22.7%)	177 (14.8%)	325 (17.6%)	185 (56.9%)	30 (9.2%)	215 (66.2%)	110 (33.8%)	91 (49.2%)
2007	110 (16.8%)	161 (11.3%)	271 (13%)	139 (51.3%)	34 (12.5%)	173 (63.8%)	98 (36.2%)	75 (54%)
2008	98 (11.7%)	163 (11.3%)	261 (11.4%)	145 (55.6%)	31 (11.9%)	176 (67.4%)	85 (32.6%)	59 (40.7%)
2009	85 (11.9%)	133 (13.5%)	218 (12.9%)	138 (63.3%)	14 (6.4%)	152 (69.7%)	66 (30.3%)	53 (38.4%)
2010	66 (13.4%)	79 (8.1%)	145 (9.9%)	85 (58.6%)	13 (9.0%)	98 (67.6%)	47 (32.4%)	39 (45.9%)
2011	47 (10.2%)	93 (7.4%)	140 (8.2%)	92 (65.7%)	23 (16.4%)	115 (82.1%)	25 (17.9%)	33 (35.9%)
2012	25 (5.3%)	83 (7.2%)	108 (6.6%)	60 (55.6%)	10 (9.3%)	70 (64.8%)	38 (35.2%)	28 (46.7%)
2013	38 (8.6%)	62 (6.0%)	100 (6.7%)	62 (62.0%)	13 (13.0%)	75 (75.0%)	25 (25.0%)	25 (40.3%)
2014	25 (5.4%)	43 (4.5%)	68 (4.8%)	30 (44.1%)	15 (22.1%)	45 (66.2%)	23 (33.8%)	11 (36.7%)
2015	23 (5.2%)	44 (5.1%)	67 (5.1%)	34 (50.8%)	9 (13.4%)	43 (64.2%)	24 (35.8%)	5 (14.7%)
2016	24 (4.9%)	27 (2.8%)	51 (3.5%)	36 (70.6%)	7 (13.7%)	43 (84.3%)	8 (15.7%)	11 (30.6%)
2017	8 (1.4%)	28 (3.3%)	36 (2.5%)	19 (52.8%)	10 (27.8%)	29 (80.6%)	7 (19.4%)	7 (36.8%)
Total	1,352	2,346	3,698	1,882	457	2,339	1,359	856

* Percentage (%) in the "filed, handled and unresolved" is the ratio of utility model cases out of the total cases in the corresponding category.

* Percentage (%) in the "appeal" is the appeal ratio of utility model cases out of the

total decisions on utility model.

Reflection on the Past 20 Years and Future of Patent Court 23

[Table 5] Annual status of design cases: filed, handled, unresolved and appealed

Classification Year	Number of cases filed			Number of cases handled			Unresolved	Appeal (rate of appeal)
	Unresolved	New	Total	Decision	Others	Total		
1998		146 (13%)	146 (13%)	61 (41.8%)	32 (21.9%)	93 (63.7%)	53 (36.3%)	17 (27.9%)
1999	53 (11.6%)	146 (14.7%)	199 (13.7%)	100 (50.3%)	28 (14.1%)	128 (64.3%)	71 (35.7%)	45 (45%)
2000	71 (13.2%)	107 (12.4%)	178 (12.7%)	95 (53.4%)	37 (20.8%)	132 (74.2%)	46 (25.8%)	42 (44.2%)
2001	46 (9.2%)	106 (14.6%)	152 (12.4%)	85 (55.9%)	16 (10.5%)	101 (66.4%)	51 (33.6%)	45 (52.9%)
2002	51 (11.9%)	98 (11.6%)	149 (11.7%)	101 (67.8%)	10 (6.7%)	111 (74.5%)	38 (25.5%)	36 (35.6%)
2003	38 (8.1%)	113 (15.1%)	151 (12.4%)	73 (48.3%)	10 (6.6%)	83 (55%)	68 (45%)	27 (37%)
2004	68 (14.7%)	101 (11.5%)	169 (12.6%)	100 (59.2%)	25 (14.8%)	125 (74.0%)	44 (26.0%)	58 (58.0%)
2005	44 (9%)	101 (9.0%)	145 (9.1%)	86 (59.3%)	23 (15.9%)	109 (75.2%)	36 (24.8%)	46 (53.5%)
2006	36 (5.5%)	81 (6.8%)	117 (6.3%)	84 (71.8%)	12 (10.3%)	96 (82.1%)	21 (17.9%)	40 (47.6%)
2007	21 (3.2%)	85 (5.9%)	106 (5.1%)	56 (52.8%)	7 (6.6%)	63 (59.4%)	43 (40.6%)	32 (57.1)
2008	43 (5.2%)	97 (6.7%)	140 (6.1%)	99 (70.7%)	14 (10.0%)	113 (80.7%)	27 (19.3%)	43 (43.4%)
2009	27 (3.8%)	94 (9.6%)	121 (7.1%)	70 (57.9%)	10 (8.3%)	80 (66.1%)	41 (33.9%)	37 (52.9%)
2010	41 (8.3%)	100 (10.2%)	141 (9.6%)	105 (74.5%)	19 (13.5%)	124 (87.9%)	17 (12.1%)	47 (44.8%)
2011	17 (3.7%)	128 (10.2%)	145 (8.5%)	106 (73.1%)	11 (7.6%)	117 (80.7%)	28 (19.3%)	38 (35.9%)
2012	28 (5.9%)	74 (6.4%)	102 (6.3%)	53 (52.0%)	21 (20.6%)	74 (72.6%)	28 (27.5%)	22 (41.5%)
2013	28 (6.3%)	99 (9.5%)	127 (8.6%)	56 (44.1%)	29 (22.8%)	85 (66.9%)	42 (33.1%)	31 (55.4%)
2014	42 (9.1%)	78 (8.2%)	120 (8.5%)	66 (55.0%)	22 (18.3%)	88 (73.3%)	32 (26.7%)	28 (42.4%)
2015	32 (7.2%)	99 (11.5%)	131 (10.0%)	69 (52.7%)	19 (14.5%)	88 (67.2%)	43 (32.8%)	24 (34.8%)
2016	43 (8.7%)	74 (7.6%)	117 (7.9%)	77 (65.8%)	13 (11.1%)	90 (76.9%)	27 (23.1%)	20 (26.0%)
2017	27 (4.6%)	73 (8.6%)	100 (6.9%)	58 (58.0%)	20 (20.0%)	78 (78.0%)	22 (22.0%)	29 (50.0%)
Total	756	2,000	2,756	1,600	378	1,978	778	707

* Percentage (%) in the "filed, handled and unresolved" is the ratio of design cases out of the total cases in the corresponding category.

* Percentage (%) in the "appeal" is the appeal ratio of design cases out of the total decisions on design.

[Table 6] Annual status of trademark cases: filed, handled, unresolved and appealed

Classification Year	Number of cases filed			Number of cases handled			Unresolved	Appeal (rate of appeal)
	Unresolved	New	Total	Decision	Others	Total		
1998		567 (50.7%)	567 (50.7%)	317 (56%)	69 (12.2%)	386 (68.1%)	181 (31.9%)	123 (38.8%)
1999	181 (39.6%)	551 (55.4%)	732 (50.4%)	381 (52%)	110 (15%)	491 (67.1%)	241 (32.9%)	160 (42%)
2000	241 (44.7%)	472 (54.5%)	713 (50.7%)	439 (61.6%)	62 (8.7%)	501 (70.3%)	212 (29.7%)	213 (48.5%)
2001	212 (42.4%)	306 (42.1%)	518 (42.3%)	316 (61%)	68 (13.1%)	384 (74.1%)	134 (25.9%)	166 (52.5%)
2002	134 (31.2%)	383 (45.4%)	517 (40.6%)	305 (59%)	52 (10%)	357 (69.1%)	160 (30.9%)	141 (46.2%)
2003	160 (34%)	352 (47%)	512 (42%)	320 (62.5%)	40 (7.8%)	360 (70.3%)	152 (29.7%)	138 (43.1%)
2004	152 (32.9%)	348 (39.6%)	500 (37.3%)	300 (60.0%)	61 (12.2%)	361 (72.2%)	139 (27.8%)	157 (52.3%)
2005	139 (28.8%)	391 (35.0%)	530 (33.1%)	340 (64.2%)	63 (11.9%)	403 (76%)	127 (24%)	157 (46.2%)
2006	127 (19.4%)	387 (32.5%)	514 (27.9%)	327 (63.6%)	67 (13%)	394 (76.7%)	120 (23.3%)	133 (40.7%)
2007	120 (18.3%)	510 (35.7%)	630 (30.2%)	326 (51.7%)	71 (11.3%)	397 (63%)	233 (37%)	158 (48.5%)
2008	233 (27.9%)	509 (35.1%)	742 (32.5%)	490 (66.0%)	102 (13.8%)	592 (79.8%)	150 (20.2%)	225 (45.9%)
2009	150 (21.0%)	304 (30.9%)	454 (26.8%)	293 (64.5%)	62 (13.7%)	355 (78.2%)	99 (21.8%)	145 (49.5%)
2010	99 (20.0%)	272 (27.8%)	371 (25.2%)	218 (58.8%)	55 (14.8%)	273 (73.6%)	98 (26.4%)	113 (51.8%)
2011	98 (21.3%)	397 (31.6%)	495 (28.8%)	311 (62.8%)	68 (13.7%)	379 (76.6%)	116 (23.4%)	134 (43.1%)
2012	116 (24.5%)	405 (35.1%)	521 (32.0%)	321 (61.6%)	72 (13.8%)	393 (75.4%)	128 (24.6%)	138 (43.0%)
2013	128 (28.8%)	304 (29.2%)	432 (29.1%)	263 (60.9%)	64 (14.8%)	327 (75.7%)	105 (24.3%)	109 (41.5%)
2014	105 (22.8%)	326 (34.4%)	431 (30.6%)	208 (48.3%)	98 (22.7%)	306 (71.0%)	125 (29.0%)	80 (38.5%)
2015	125 (28.2%)	281 (32.5%)	406 (31.1%)	204 (50.3%)	56 (13.8%)	260 (64.0%)	146 (36.0%)	90 (44.1%)
2016	146 (29.6%)	267 (27.3%)	413 (28.0%)	232 (56.2%)	61 (14.8%)	293 (70.9%)	120 (29.1%)	103 (44.4%)
2017	120 (20.2%)	235 (27.6%)	355 (24.6%)	218 (61.4%)	57 (16.1%)	275 (77.5%)	80 (22.5%)	103 (47.3%)
Total	2,786	7,567	10,353	6,129	1,358	7,487	2,866	2,786

* Percentage (%) of the "filed, handled and unresolved" is the ratio of trademark cases out of the total cases in the corresponding category.

* Percentage (%) of the "appeal" is the appeal ratio of design cases out of the total decisions on trademark.

Reflection on the Past 20 Years and Future of Patent Court 25

[Table 7-1] IPTAB decisions

Category Year	Patent	Utility model	Design	Trademark	Total
1998	2,264 (29%)	1,137 (14.5%)	1,091 (14%)	3,328 (42.6%)	7,820
1999	2,481 (34.1%)	729 (10%)	696 (9.6%)	3,373 (46.3%)	7,279
2000	2,413 (39.7%)	550 (9%)	525 (8.6%)	2,591 (42.6%)	6,079
2001	2,415 (40.3%)	608 (10.1%)	546 (9.1%)	2,426 (40.5%)	5,995
2002	3,022 (43.9%)	766 (11.1%)	457 (6.6%)	2,645 (38.4%)	6,890
2003	2,836 (39.8%)	728 (10.2%)	570 (8%)	2,986 (41.9%)	7,120
2004	4,051 (45.6%)	876 (9.9%)	585 (6.6%)	3,363 (37.9%)	8,875
2005	6,572 (55.1%)	1,041 (8.7%)	518 (4.3%)	3,788 (31.8%)	11,919
2006	9,793 (63.9%)	857 (5.6%)	465 (3.0%)	4,221 (27.5%)	15,336
2007	10,948 (64.5%)	861 (5.1%)	530 (3.1%)	4,644 (27.3%)	16,983
2008	3,638 (47.9%)	544 (7.2%)	465 (6.1%)	2,952 (38.8%)	7,599
2009	3,260 (51.3%)	429 (6.8%)	415 (6.5%)	2,250 (35.4%)	6,354
2010	3,481 (56.2%)	393 (6.4%)	510 (8.2%)	1,811 (29.2%)	6,195
2011	5,471 (51.8%)	543 (5.1%)	619 (5.9%)	3,937 (37.2%)	10,570
2012	5,581 (53.9%)	424 (4.1%)	489 (4.7%)	3,868 (37.3%)	10,362
2013	5,354 (52.5%)	370 (3.6%)	465 (4.6%)	4,005 (39.3%)	10,194
2014	5,189 (54.3%)	250 (2.6%)	484 (5.1%)	3,626 (38.0%)	9,549
2015	5,214 (54.6%)	221 (2.3%)	469 (4.9%)	3,640 (38.1%)	9,544
2016	4,823 (53.6%)	200 (2.2%)	415 (4.6%)	3,555 (39.5%)	8,993
2017	4,890 (49.6%)	209 (2.1%)	1,161 (11.8%)	3,589 (36.4%)	9,849
Total	93,696	11,736	11,475	66,598	183,505

* Percentage (%) is the ratio of administrative trial decisions in the corresponding category out of the total administrative trial decisions.

[Table 7-2] Litigated and revoked IPTAB decisions

Classification Year	Patent		Utility model		Design		Trademark		Total	
	Litigated	Revoked	Litigated	Revoked	Litigated	Revoked	Litigated	Revoked	Litigated	Revoked
1998	175 (7.7%)	6 (15.8%)	231 (20.3%)	26 (35.1%)	146 (13.3%)	29 (47.5%)	567 (17%)	109 (34.4%)	1,119 (14.3%)	170 (34.7%)
1999	176 (7.1%)	39 (39%)	122 (16.7%)	58 (46%)	146 (21%)	33 (33%)	551 (16.3%)	94 (24.7%)	995 (13.7%)	224 (31.7%)
2000	178 (7.4%)	41 (31.3%)	109 (19.8%)	38 (41.8%)	107 (20.4%)	28 (29.5%)	472 (18.2%)	140 (31.9%)	866 (14.2%)	247 (32.7%)
2001	176 (7.3%)	58 (33.9%)	138 (22.7%)	30 (34.1%)	106 (19.4%)	25 (29.4%)	306 (12.6%)	85 (26.9%)	726 (12.1%)	198 (30%)
2002	211 (7%)	46 (30.3%)	151 (19.7%)	43 (35.5%)	98 (21.4%)	36 (35.6%)	383 (14.5%)	95 (31.1%)	843 (12.2%)	220 (32.4%)
2003	158 (5.6%)	43 (27.9%)	126 (17.3%)	31 (29.5%)	113 (19.8%)	25 (34.2%)	352 (11.8%)	84 (26.3%)	749 (10.5%)	183 (28.1%)
2004	264 (6.5%)	50 (30.3%)	165 (18.8%)	40 (30.8%)	101 (17.3%)	23 (23.0%)	348 (10.3%)	67 (22.3%)	878 (9.9%)	180 (25.9%)
2005	412 (6.3%)	69 (33.5%)	211 (20.2%)	38 (31.1%)	101 (19.5%)	32 (26%)	391 (10.3%)	83 (24.4%)	1,115 (9.4%)	222 (29.4%)
2006	547 (5.6%)	131 (31.6%)	177 (20.7%)	66 (35.7%)	81 (17.4%)	26 (31%)	387 (9.2%)	92 (28.1%)	1,192 (7.8%)	315 (31.2%)
2007	673 (6.1%)	142 (28.2%)	161 (18.7%)	48 (34.5%)	85 (16%)	18 (32.1%)	510 (11%)	89 (27.3%)	1,429 (8.4%)	297 (29%)
2008	680 (18.7%)	130 (25%)	163 (30.0%)	38 (26.2%)	97 (20.9%)	33 (33.3%)	509 (17.2%)	136 (27.8%)	1,449 (19.1%)	337 (26.9%)
2009	452 (13.9%)	120 (24%)	133 (31.0%)	38 (27.5%)	94 (22.7%)	15 (21.4%)	304 (13.5%)	97 (33.1%)	983 (15.5%)	270 (27%)
2010	527 (15.1%)	83 (20.2%)	79 (20.1%)	22 (25.9%)	100 (19.6%)	28 (26.7%)	272 (15.0%)	72 (33%)	978 (15.8%)	205 (25.1%)
2011	639 (11.7%)	124 (24%)	93 (17.1%)	23 (25%)	128 (20.8%)	23 (21.7%)	397 (10.1%)	95 (30.5%)	1,257 (11.9%)	265 (25.8%)
2012	592 (10.6%)	127 (24.8%)	83 (19.6%)	22 (36.7%)	74 (15.1%)	18 (34%)	405 (10.5%)	79 (24.6%)	1,154 (11.1%)	246 (26%)
2013	575 (10.7%)	86 (20.8%)	62 (16.8%)	30 (48.4%)	99 (21.3%)	15 (26.8%)	304 (7.6%)	64 (24.3%)	1,040 (10.2%)	195 (24.5%)
2014	501 (9.7%)	129 (31.6%)	43 (17.2%)	9 (30%)	78 (16.1%)	29 (43.9%)	326 (9.0%)	63 (30.3%)	948 (9.9%)	230 (32.3%)
2015	440 (8.4%)	87 (27.8%)	44 (19.9%)	11 (32.4%)	99 (21.1%)	25 (36.2%)	281 (7.7%)	69 (33.8%)	864 (9.1%)	192 (31%)
2016	611 (12.7%)	105 (27.7%)	27 (13.5%)	11 (30.6%)	74 (17.8%)	23 (29.9%)	267 (7.5%)	67 (28.9%)	979 (10.9%)	206 (28.5%)
2017	516 (10.6%)	127 (27.5%)	28 (13.4%)	6 (31.6%)	73 (6.3%)	26 (44.8%)	235 (6.5%)	59 (27.1%)	852 (8.7%)	218 (28.8%)
Total	8,503 (9.1%)	1,743 (26.9%)	2,346 (20.0%)	628 (33.4%)	2,000 (17.4%)	510 (31.9%)	7,567 (11.4%)	1,739 (27.9%)	20,416 (11.1%)	4,620 (28.7%)

* Percentage (%) in the "litigated" category is the ratio of suits against administrative trial decisions filed with the Patent Court.

* Percentage (%) in the "revoked" category is the ratio of decisions that revoked all of the administrative trial decisions excluding partial revocation.

Reflection on the Past 20 Years and Future of Patent Court 27

[Table 8-1] Status of processing period by year and type

Classification Year	Type of cases	Within 6 months	6 months to less than 1 year	1 to 2 years	More than 2 years	Total number of cases handled
1998	Patent	29 (48.3%)	31 (51.7%)			60
	Utility model	88 (71.5%)	35 (28.5%)			123
	Design	81 (87.1%)	12 (12.9%)			93
	Trademark	330 (85.5%)	56 (14.5%)			386
	Total	528 (79.8%)	134 (20.2%)			662
1999	Patent	43 (30.9%)	91 (65.5%)	5 (3.6%)		139
	Utility model	59 (38.1%)	87 (56.1%)	9 (5.8%)		155
	Design	112 (87.5%)	16 (12.5%)			128
	Trademark	396 (80.7%)	85 (17.3%)	10 (2.0%)		491
	Total	610 (66.8%)	279 (30.6%)	24 (2.6%)		913
2000	Patent	27 (17.3%)	73 (46.8%)	54 (34.6%)	2 (1.3%)	156
	Utility model	40 (34.5%)	60 (51.7%)	16 (13.8%)		116
	Design	83 (62.9%)	42 (31.8%)	7 (5.3%)		132
	Trademark	298 (59.5%)	183 (36.5%)	19 (3.8%)	1 (0.2%)	501
	Total	448 (49.5%)	358 (39.6%)	96 (10.6%)	3 (0.3%)	905
2001	Patent	38 (18.8%)	101 (50.0%)	56 (27.7%)	7 (3.5%)	202
	Utility model	21 (19.2%)	73 (67.0%)	11 (10.1%)	4 (3.7%)	109
	Design	63 (62.3%)	35 (34.7%)	3 (3.0%)		101
	Trademark	241 (62.8%)	107 (27.9%)	35 (9.1%)	1 (0.2%)	384
	Total	363 (45.6%)	316 (39.7%)	105 (13.2%)	12 (1.5%)	796
2002	Patent	28 (15%)	92 (49.2%)	57 (30.5%)	10 (5.3%)	187
	Utility model	20 (13.6%)	90 (61.2%)	34 (23.2%)	3 (2.0%)	147
	Design	75 (67.6%)	36 (32.4%)			111
	Trademark	294 (82.4%)	52 (14.6%)	11 (3.0%)		357
	Total	417 (52%)	270 (33.7%)	102 (12.7%)	13 (1.6%)	802

Classification Year	Type of cases	Within 6 months	6 months to less than 1 year	1 to 2 years	More than 2 years	Total number of cases handled
2003	Patent	25 (13.4%)	97 (51.9%)	63 (33.7%)	2 (1.0%)	187
	Utility model	20 (15.6%)	91 (71.1%)	16 (12.5%)	1 (0.8%)	128
	Design	67 (80.7%)	15 (18.1%)	1 (1.2%)		83
	Trademark	280 (77.8%)	68 (18.9%)	12 (3.3%)		360
	Total	392 (51.7%)	271 (35.8%)	92 (12.1%)	3 (0.4%)	758
2004	Patent	47 (22.1%)	109 (51.2%)	50 (23.4%)	7 (3.3%)	213
	Utility model	36 (22.9%)	96 (61.2%)	24 (15.3%)	1 (0.6%)	157
	Design	97 (77.6%)	28 (22.4%)			125
	Trademark	287 (79.5%)	72 (19.9%)	2 (0.6%)		361
	Total	467 (54.6%)	305 (35.6%)	76 (8.9%)	8 (0.9%)	856
2005	Patent	50 (19%)	187 (70.8%)	24 (9.1%)	3 (1.1%)	264
	Utility model	40 (23.5%)	118 (69.4%)	12 (7.1%)		170
	Design	98 (90%)	9 (8.2%)		2 (1.8%)	109
	Trademark	346 (86%)	53 (13.1%)	3 (0.7%)	1 (0.2%)	403
	Total	534 (56.5%)	367 (38.8%)	39 (4.1%)	6 (0.6%)	946
2006	Patent	72 (14.8%)	324 (66.7%)	86 (17.7%)	4 (0.8%)	486
	Utility model	25 (11.6%)	163 (75.8%)	26 (12.1%)	1 (0.5%)	215
	Design	80 (83.3%)	14 (14.6%)		2 (2.1%)	96
	Trademark	325 (82.5%)	67 (17%)	2 (0.5%)		394
	Total	502 (42.1%)	568 (47.7%)	114 (9.6%)	7 (0.6%)	1,191

Reflection on the Past 20 Years and Future of Patent Court 29

Classification Year	Type of cases	Within 6 months	6 months to less than 1 year	1 to 2 years	More than 2 years	Total number of cases handled
2007	Patent	144 (23.4%)	433 (70.4%)	32 (5.2%)	6 (0.9%)	615
	Utility model	39 (22.5%)	115 (66.5%)	19 (11%)		173
	Design	54 (85.7%)	9 (14.3%)			63
	Trademark	351 (88.4%)	38 (9.6%)	8 (2%)		397
	Total	588 (47.1%)	595 (47.7%)	59 (4.7%)	6 (0.5%)	1,248
2008	Patent	154 (22.4%)	462 (67.1%)	70 (10.2%)	3 (0.4%)	689
	Utility model	56 (31.8%)	114 (64.8%)	6 (3.4%)		176
	Design	83 (73.5%)	29 (25.7%)	1 (0.9%)		113
	Trademark	455 (76.9%)	128 (21.6%)	6 (1.0%)	3 (0.5%)	592
	Total	748 (47.6%)	733 (46.7%)	83 (5.3%)	6 (0.4%)	1,570
2009	Patent	109 (17.7%)	401 (65.1%)	103 (16.7%)	3 (0.5%)	616
	Utility model	33 (21.7%)	103 (67.8%)	15 (9.9%)	1 (0.6%)	152
	Design	73 (91.3%)	7 (8.7%)			80
	Trademark	273 (77%)	76 (21.4%)	6 (1.6%)		355
	Total	488 (40.6%)	587 (48.8%)	124 (10.3%)	4 (0.3%)	1,203
2010	Patent	183 (35.4%)	303 (58.6%)	29 (5.6%)	2 (0.4%)	517
	Utility model	31 (31.6%)	65 (66.3%)	2 (2.1%)		98
	Design	108 (87.1%)	15 (12.1%)	1 (0.8%)		124
	Trademark	229 (83.9%)	44 (16.1%)			273
	Total	551 (54.4%)	427 (42.2%)	32 (3.2%)	2 (0.2%)	1,012
2011	Patent	190 (30.0%)	408 (64.6%)	29 (4.6%)	5 (0.8%)	632
	Utility model	47 (40.9%)	68 (59.1%)			115
	Design	106 (90.6%)	11 (9.4%)			117
	Trademark	332 (87.6%)	46 (12.1%)	1 (0.3%)		379
	Total	675 (54.3%)	533 (42.9%)	30 (2.4%)	5 (0.4%)	1,243

Classification Year	Type of cases	Within 6 months	6 months to less than 1 year	1 to 2 years	More than 2 years	Total number of cases handled
2012	Patent	400 (61.8%)	237 (36.6%)	10 (1.6%)		647
	Utility model	56 (80.0%)	14 (20.0%)			70
	Design	66 (89.2%)	8 (10.8%)			74
	Trademark	349 (88.8%)	43 (10.9%)		1 (0.3)	393
	Total	871 (73.6%)	302 (25.5%)	10 (0.8%)	1 (0.1%)	1,184
2013	Patent	328 (61.1%)	188 (35.0%)	19 (3.5%)	2 (0.4%)	537
	Utility model	54 (72.0%)	17 (22.7%)	4 (5.3%)		75
	Design	70 (82.4%)	15 (17.6%)			85
	Trademark	253 (77.4%)	68 (20.8%)	6 (1.8%)		327
	Total	705 (68.8%)	288 (28.2%)	29 (2.8%)	2 (0.2%)	1,024
2014	Patent	213 (40.5%)	263 (50.0%)	49 (9.3%)	1 (0.2%)	526
	Utility model	22 (48.9%)	20 (44.4%)	3 (6.7%)		45
	Design	56 (63.6%)	31 (35.2%)	1 (1.1%)		88
	Trademark	235 (76.8%)	63 (20.6%)	7 (2.3%)	1 (0.3%)	306
	Total	526 (54.5%)	377 (39.1%)	60 (6.2%)	2 (0.2%)	965
2015	Patent	98 (23.2%)	293 (69.4%)	29 (6.9%)	2 (0.5%)	422
	Utility model	12 (27.9%)	30 (69.8%)	1 (2.3%)		43
	Design	58 (65.9%)	29 (33.0%)	1 (1.1%)		88
	Trademark	167 (64.2%)	88 (33.8%)	5 (1.9%)		260
	Total	335 (41.2%)	440 (54.1%)	36 (4.4%)	2 (0.2%)	813
2016	Patent	162 (35.8%)	242 (53.4%)	43 (9.5%)	6 (1.3%)	453
	Utility model	14 (32.6%)	24 (55.8%)	5 (11.6%)		43
	Design	62 (68.9%)	26 (28.9%)	2 (2.2%)		90
	Trademark	183 (62.5%)	100 (34.1%)	7 (2.4%)	3 (1.0%)	293
	Total	421 (47.9%)	392 (44.6%)	57 (6.5%)	9 (1.0%)	879

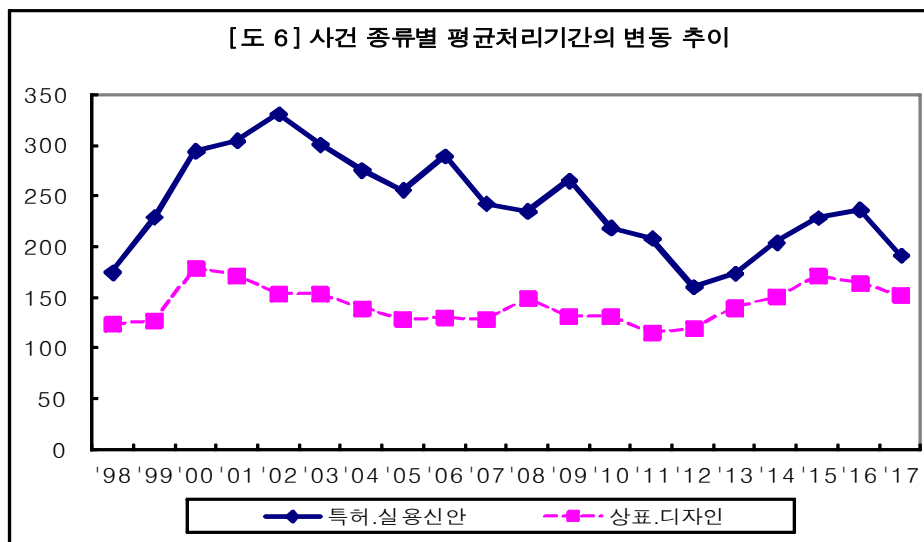
Reflection on the Past 20 Years and Future of Patent Court 31

Classification Year	Type of cases	Within 6 months	6 months to less than 1 year	1 to 2 years	More than 2 years	Total number of cases handled
2017	Patent	216 (37.1%)	274 (47.1%)	83 (14.3%)	9 (1.5%)	582
	Utility model	21 (72.4%)	6 (20.7%)	2 (6.9%)		29
	Design	61 (78.2%)	13 (16.7%)	3 (3.8%)	1 (1.3%)	78
	Trademark	203 (73.8%)	65 (23.6%)	7 (2.5%)		275
	Total	501 (52.0%)	358 (37.1%)	95 (9.9%)	10 (1.0%)	964
총 계		10,670 (53.5%)	7,900 (39.6%)	1,263 (6.3%)	101 (0.5%)	19,934

* Percentage (%) of each item is the ratio of cases handled during each period out of the total cases handled in each year.

[Table 8-2] Average processing period by year and type (Unit : day)

Year \ Type	Patent · Utility model	Trademark · Design
1998	175.2	124.1
1999	229.7	127.7
2000	294.5	178.8
2001	304.9	171.9
2002	331.4	153.5
2003	301.4	153.8
2004	276.1	140.0
2005	256.4	129.1
2006	289.9	130.8
2007	242.9	128.7
2008	235.3	149.5
2009	265.7	131.3
2010	219.0	131.5
2011	208.7	116.2
2012	160.8	119.5
2013	174.1	140.1
2014	204.8	151.7
2015	229.0	171.7
2016	236.7	164.4
2017	191.9	153.3

[Figure 6] Trends in average handling period by case type
patent, utility model trademark, design

Reflection on the Past 20 Years and Future of Patent Court 33

[Table 9] Annual processing status of cross-border cases

Classification Type of cases	Year	Total numb er of cases handle d	Number of involved foreigners (including corporations)										Percent age of cross-b order cases out of the total cases handled
			US	Japa n	Fran ce	Ger man y	UK	Italy	Nethe rlands	Swit zerla nd	Othe rs	Total	
Patent	1999	139	13	14	1	2	2					32	23%
	2000	156	24	18	5	9	5		1			62	39.7%
	2001	202	31	17	3	5	2		2	2	7	69	34.2%
	2002	187	29	26	5	10	1	2	2		5	80	42.8%
	2003	187	22	24	1	3		1		14	4	69	36.9%
	2004	213	27	29	5	4	1	2	1	3	2	74	34.7%
	2005	264	28	30	9	6	1			3	7	84	31.8%
	2006	486	47	57	5	7	3	3	4	4	10	140	28.8%
	2007	615	56	66	10	11	8	2	2	8	21	184	29.9%
	2008	689	75	34	18	13	5	1	8	4	25	183	26.6%
	2009	616	58	46	4	17	5	1	9	8	59	207	33.6%
	2010	517	46	39	4	10	3		2	4	40	148	28.6%
	2011	632	60	41	7	13	6	2	3	2	30	164	25.9%
	2012	647	55	45	10	43	6	1	3	6	26	195	30.1%
	2013	537	47	43	5	18	2	5	2	5	28	155	28.9%
	2014	526	45	37	5	12	2	1	3	19	29	153	29.1%
	2015	422	38	34	12	12	1	1	4	9	17	128	30.3%
	2016	453	35	30	3		5		1		51	125	27.6%
	2017	582	52	46	3	24	10	1	6	14	38	194	33.3%
	Total	8,070	788	676	115	219	68	23	53	105	399	2,446	30.3%

Classification Type of cases	Year	Total numb er of cases handle d	Number of involved foreigners (including corporations)										Percent age of cross-b order cases out of the total cases handled
			US	Japa n	Fran ce	Ger man y	UK	Italy	Nethe rlands	Swit zerla nd	Othe rs	Total	
Utility model	1999년	155		1		1						2	1.3%
	2000년	116				2						2	1.7%
	2001년	109	1	4								5	4.6%
	2002년	147		3								3	2.0%
	2003년	128		1			1					2	1.6%
	2004년	157	3	5	1	3						12	7.6%
	2005년	170									1	1	0.5%
	2006년	215		2		1			1			4	1.9%
	2007년	173		2							1	3	2.9%
	2008년	176											0%
	2009년	152		4							11	15	9.9%
	2010년	98				2						2	2.0%
	2011년	115		1							1	2	1.7%
	2012년	70		1								1	1.4%
	2013년	75										1	1.3%
	2014년	45				1						1	2.2%
	2015년	43										0	0%
	2016년	43										0	0%
	2017년	29									1	1	3.4%
	Total	2,216	4	18	1	7	1		1		2	34	1.5%

Reflection on the Past 20 Years and Future of Patent Court 35

Classification Type of cases	Year	Total number of cases handled	Number of involved foreigners (including corporations)										Percent age of cross-border cases out of the total cases handled
			US	Japan	France	Germany	UK	Italy	Netherlands	Switzerland	Others	Total	
Design	1999	128	2	3								5	3.9%
	2000	132	1		1				2			4	3.0%
	2001	101		3							1	4	4.0%
	2002	111	1	2	1							4	3.6%
	2003	83	2		4		1					7	8.4%
	2004	125	2					4				6	4.8%
	2005	109					1					1	0.9%
	2006	96	3				2					5	5.2%
	2007	63					3	3			4	10	15.9%
	2008	113		2				2				4	3.5%
	2009	80	2	2							17	21	26.3%
	2010	124		5				1				6	0.5%
	2011	117									4	4	3.4%
	2012	74						1				1	1.4%
	2013	85											0%
	2014	88	1	1		1		1				4	4.5%
	2015	88	6									6	6.8%
	2016	90		1								1	1.1%
	2017	78	3		1				1			5	6.4%
	Total	948	11	8	6		7	7	2		5	46	4.9%

Classification Type of cases	Year	Total number of cases handled	Number of involved foreigners (including corporations)										Percent age of cross-border cases out of the total cases handled
			US	Japan	France	Germany	UK	Italy	Netherlands	Switzerland	Others	Total	
Trademark	1999	491	119	44	36	14	10	10	14	8	26	281	57.2%
	2000	501	79	41	22	20	8	36	2	4	29	241	48.1%
	2001	384	107	20	18	9	5	11	5	8	14	197	51.3%
	2002	357	58	25	15	13	6	5	1	7	10	140	39.2%
	2003	360	46	17	14	18	7	5	5	12	20	144	40.0%
	2004	361	46	24	7	2	9	6	1	6	1	102	28.3%
	2005	403	67	21	11	6	4	3	4	3	38	157	38.9%
	2006	394	79	42	4	6	12	17	2	5	18	185	47%
	2007	397	67	25	12	6	25	5	3	6	29	178	44.8%
	2008	592	104	30	16	22	25	14	8	8	28	255	43.1%
	2009	355	48	21	11	6	12	2	3	4	85	192	54.1%
	2010	273	34	22	11	13	6	10	11	4	26	137	50.2%
	2011	379	69	36	5	4	4	6	1	3	29	157	41.4%
	2012	393	67	21	13	17	12	9	6	9	46	200	50.9%
	2013	327	56	10	12	10	16	1	1	3	25	134	41.0%
	2014	306	48	9	13	11	3	9	2	26	25	146	47.7%
	2015	260	27	14	4	8	5	2		1	27	88	33.8%
	2016	293	50	16			3	1		2	40	112	38.2%
	2017	275	48	15	3	5	4	7	1	4	17	104	37.8%
	Total	3,648	668	259	139	94	86	98	37	59	185	1,625	44.5%

Reflection on the Past 20 Years and Future of Patent Court 37

Classification Type of cases	Year	Total numb er of cases handle d	Number of involved foreigners (including corporations)										Percent age of cross-b order cases out of the total cases handled
			US	Japa n	Fran ce	Ger man y	UK	Italy	Nethe rlands	Swit zerla nd	Othe rs	Total	
Total	1999	913	134	62	37	17	12	10	14	8	26	320	35%
	2000	905	104	59	28	31	13	36	5	4	29	309	34.1%
	2001	796	139	44	21	14	7	11	7	10	22	275	34.5%
	2002	802	88	56	21	23	7	7	3	7	15	227	28.3%
	2003	758	70	42	19	22	8	6	5	26	24	222	29.3%
	2004	856	78	58	13	9	10	12	2	9	3	194	22.7%
	2005	946	95	51	20	12	6	3	4	6	46	243	25.7%
	2006	1,191	129	101	9	14	17	20	7	9	28	334	28.0%
	2007	1,248	123	93	22	17	36	10	5	14	55	375	30.0%
	2008	1,570	179	66	34	35	30	17	16	12	53	442	28.2%
	2009	1,203	108	73	15	23	17	3	12	12	172	435	36.2%
	2010	1,012	80	66	15	25	9	11	13	8	66	293	29.0%
	2011	1,243	129	78	12	17	10	8	4	5	64	327	23.3%
	2012	1,184	122	67	23	60	18	11	9	15	72	397	33.5%
	2013	1,024	103	54	17	28	18	6	3	8	53	290	28.3%
	2014	965	94	47	18	25	5	11	5	45	54	304	31.5%
	2015	813	71	48	16	20	6	3	4	10	44	222	27.3%
	2016	879	85	47	3		8	1	1	2	91	238	27.1%
	2017	964	103	61	7	29	14	8	8	18	56	304	31.5%
	Total	19,272	2,034	1,173	350	421	251	194	127	228	973	5,751	29.8%

[Table 10] Annual status of civil appeals: filed, handled, unresolved and appealed to the Supreme Court

Classification Year	Number of cases filed			Number of cases handled				Unresolved	Appeal
	Unresolved	New	Total	Decision	Mediation	Others	Total		
2016	–	112	112	14	6	9	29	83	9
2017	83	183	266	95	13	31	139	127	42
Total	83	295	378	109	19	40	168	210	51

[Table 11] Processing time of civil appeals by year

Classification Year	Within 6 months	6 months to less than 1 year	1 to 2 years	More than 2 years	Total
2016	26 (89.7)	3 (100)			29
2017	60 (43.2)	68 (92.1)	11 (100)		139

【Appendix II】Two Decades of Major Decisions*

Revocation of administrative decision

1. Patent Court Decision 2017Heo2727, decided October 27, 2017 (On appeal)

[Main Issues and Holdings] Whether the non-exclusive licensee is an interested party who has the standing to file an invalidation action (Affirmative)

[Summary of Decision] Even if the license is granted for the patent, unless there are special circumstances such as the licensee is permitted to exploit the patent without any restrictions as if it has acquired the patent itself, or there is the absence of any disadvantage by having a legal interest between the licensee and the patentee such as the establishment of a partnership between the parties, the licensee is in principle a person who is subject to the legal disadvantage due to the existence of the right of the patented invention and thus has a direct and realistic interest according to the end of the patented invention.

2. Patent Court Decision 2013Heo9805, decided July 10, 2014 (Final)

[Main Issues and Holdings] Meaning of "the continuation of the previous trial" in the prohibition of duplicate administrative trial

[Summary of Decision] It is reasonable to interpret "the continuation of the previous trial" in which the request for duplicate trial is prohibited as "the decision from the previous trial is not confirmed," not "the trial is continuing at IPTAB."

3. Patent Court Decision 2014Heo1563 decided December 4, 2014 (Final)

* Out of the decisions rendered by the Patent Court for 20 years, cases ① on which decisions have never been rendered by the Supreme Court and thus have significance as precedent setting the general standard or ② that the Supreme Court supported the holding after the ruling. The decisions for the 10 years after the opening of the Patent Court are listed on pages 33 to 42 of the "Patent Court Decisions for the 10th Anniversary (Patent Court, 2008)," and the decisions listed here include those rendered afterwards.

[Main Issues and Holdings] Whether it is well-known and commonly used art that supplements grounds for rejection

[Summary of Decision] According to the defendant, it is possible to derive a feature related to providing or receiving the network status information including network address between the terminal and the server of the Claim 1 of the subject invention by adding the abovementioned well-known and commonly used art to the cited invention 1. However, this argument is nothing more than adding publicly known arts or new grounds that were not notified without providing an opportunity to submit an opinion because of being well-known and commonly used art, instead of identifying the technical significance by supplementing well-known and commonly used arts to the cited invention. Therefore, since this claim is in line with the main purpose of the grounds for rejection that were notified during the examination for the subject invention that lacks inventive step by cited inventions, it cannot be considered to supplement the already notified grounds for rejection.

4. Patent Court Decision 2016Heo7695, decided August 17, 2017 (Final)*

[Main Issues and Holdings] Whether a prior art raised in different combinational relationship constitutes a new ground for rejection (Affirmative)

[Summary of Decision] Even if a ground newly raised during the litigation is only different in whether prior arts are combined or in the way they are combined, when compared to the prior art already provided at the examination or administrative trial stage as the grounds for rejection due to lack of inventive step, it may not be permitted as it constitutes a new ground for rejection with a primary purpose inconsistent with that of the ground for which the applicant had an opportunity to submit an opinion at the examination or administrative trial stage when there are changes to the determination, or the content subject to the determination, and thus

* The case tried at the Patent Court for the pilot English trial

the applicant was not given an opportunity to submit its opinion or make amendments at the examination or administrative trial in relation to the new combination of the prior arts.

Patent-Utility model

5. Patent Court Decision 2009Heo4872, decided November 27, 2009 (Appeal dismissed without hearing)

[Main Issues and Holdings] Time of notice of registered utility model (= date of registration for establishment of rights)

[Summary of Decision] As Article 82 of the old Utility Model Act stipulates that an incumbent or former employee of the KIPO who discloses confidential information about an invention (*Translator's note: Korean law provides protection under the Utility Model Act for inventions that are creation of technical ideas applying the law of nature but not as advanced as those granted patent rights. These inventions are sometimes referred to as "device.") disclosed in a pending utility model registration to which he/she had access in the course of performing his/her duties shall be punished, an invention disclosed in a pending utility model registration is in the state of being claimed in an application for a utility model registration. It may be considered that the duty of confidentiality of an incumbent or former employee of the KIPO would lapse by the registration of the utility model, and the invention would be in the state of being disclosed and perceived objectively to the public including an incumbent or former employee of the KIPO as of the date of registration of the utility model. Thus, when viewed in the legal principle concerning the meaning of being publicly known, it is reasonable to consider that the utility model after the date of registration is publicly known.

6. Patent Court Decision 2008Heo7850, decided May 20, 2009 (Final appeal dismissed)

[Main Issues and Holdings] Suitability of Internet posts as prior art

[Summary of Decision] It is difficult to determine the specific point in time when the content of the posts are actually disclosed on the Internet or when the general person's access to the posts become possible. In addition, it is also difficult to know how much the contents have changed during the period from the time of first being posted on the Internet to the time of being published as document.

7. Patent Court Decision 2009Heo9518, decided July 16, 2010 (Reversed and remanded)*

[Main Issues and Holdings] Possibility to amend the purpose of inventor-initiated disclosure after application (Affirmative)

[Summary of Decision] When the plaintiff filed the application without the intention of applying the inventor-initiated disclosure, the act of submitting the proof of "the inventor-initiated disclosure" to KIPO the day after the application filing date shall be deemed to the case where the omission of the purpose of applying the exception case of inventor-initiated disclosure is legitimately amended after the application.

8. Patent Court Decision 2008Heo8150, decided March 19, 2010 (Appeal withdrawn)

[Main Issues and Holdings] Meaning of a person of ordinary skill in the art

[Summary of Decision] "A person of ordinary skill in the art" refers to a hypothetical natural person who would have been able to obtain and understand all information at the state of the art in the relevant technical field and freely exercise any ordinary means and abilities necessary for research and development, available at home and abroad at the time of the filing.

9. Patent Court Decision 2012Heo9839, decided October 10, (Final appeal

* Even though the decision was reversed at the Supreme Court, Article 30(3) of the Patent Act was newly established according to the intent of this decision when amendments were made to Law No. 13096 on January 28, 2015.

Reflection on the Past 20 Years and Future of Patent Court 43

dismissed)

[Main Issues and Holdings] How to determine inventive step of an invention based on the proposed prior document

[Summary of Decision] When putting together the literature dated before the priority date of the subject invention that might be used for those skilled in the art to make a reasonable decision, the description of the claim of the invention of the plaintiff's Exhibit 17 that the Pregabalin raises the GABA level of the brain may appear more uncertain to those having ordinary skills in the art. (omitted) If that is the case, it might not be easy that those skilled in the art make a conclusion of the pain relieving effects of Pregabalin by accepting the uncertain fact described in the claim of the Exhibit 17 that the Pregabalin raises the GABA level of the brain literally and making a combination based on this fact with additional fact that the increased GABA level brings about alleviating effects.

10. Patent Court Decision 2015Heo666, decided May 27, 2016 (Appeal withdrawn)

[Main Issues and Holdings] A case that considers technological developments when determining inventiveness

[Summary of Decision] The diagram shows the trend of development of multiple-blade hair scissor, and it shows that, for ten years after publication of the prior arts, there has been no multiple-blade hair scissor having a structure in which a handle and a most-outer blade are connected directly. Such trend of development proves that PHOSITA cannot easily conceive the connection structure of Elements 5 and 6 of Claim 1 from Prior Art 1.

11. Patent Court Decision 2017Heo1373, decided July 14, 2017 (Final)

[Main Issues and Holdings] Whether novelty is denied for the invention that merely limits the purity of the publicly known substance

[Summary of Decision] The mixture of which purity is restricted by the patented invention cannot be obtained even with the published refinement

technology, and if the patented invention discloses the mixture of such purity at last, the restriction of such purity of the mixture may not be considered a well-known or commonly used art that may be selected as those skilled in the art see fit and thus the novelty of the patented invention is not denied by prior arts.

12. Patent Court Decision 2017Heo431, decided June 15, 2017 (Appel dismissed without hearing)

[Main Issues and Holdings] The standards for determining inventive step of an invention of parameter invention including numerical limitation

[Summary of Decision] When it comes to a product invention that utilizes "parameters including numerical limitation," inventive step must be determined based on the technical significance held by the "parameter including numerical limitation." If the "parameter including numerical limitation" holds its technical significance as means to solve problems different from those of the publicly known invention and have different and unique effects, its inventiveness may not be denied. In order for the patented invention to be regarded as having significance as means to solve problems and providing unique effects, it must be described in the specification that the "parameter including numerical limitation" hold technical significance as means to solve problems different from those of the publicly known invention and that there is a causal relationship between the "parameter including numerical limitation" and that unique effect or those skilled in the art must be able to deduce such technical significance and causal relationship from the description of the specification. On the other hand, if such technical significance is not revealed, the legal principle of numerical limitation would be deduced and applied, and if significant difference in effects in the range of identified numerical limitation, it may be considered that inventive step is denied.

13. Patent Court Decision 2013Heo2118, decided July 10, 2014 (Final appeal dismissed)

[Main Issues and Holdings] Whether to disclose the prior art is something specific to deny novelty of the selection invention

[Summary of Decision] 4,4'-biphenyl dimethacrylate (BPDM) is simply on the list of about 100 available monomers on the description of the cited inventions 1 and 5, and the embodiment just uses KAYARAD PET-30 that does not belong to the monomer range of formula 1 of the element 2, and not only that, that burning phenomenon caused by deformation of the polymer occurs in the multi-domain vertical alignment mode liquid crystal display device is not disclosed in the cited inventions 1 and 5 either. Also, 4,4'-biphenyl diacrylate shows a remarkable difference in reducing the burning rate due to polymer deformation, as compared with KAYARAD PET-30 used in the cited inventions 1 and 5. Therefore, it is difficult to say that the configuration 2 is specifically disclosed in the cited inventions 1 and 5.

14. Patent Court Decision 2009Heo6342, decided August 26, 2009 (Final appeal dismissed)

[Main Issues and Holdings] Determination of inventive step of crystal form invention

[Summary of Decision] In the case of a new crystal form invention whose existence has not been known before, in order to assure that the invention was completed at the time of application, it is sufficient to describe in the specification the characteristics necessary to distinguish this invention from other crystal form or amorphous form inventions and specific manufacturing methods necessary for the third person to reproduce that crystal form, not necessarily required to describe in the specification the effects of the invention in comparison with prior arts. In other words, as long as the characteristics of the crystal form invention are described in the specification, significance of the effects that are inferred from the description may be determined by comparing those of prior arts through comparative experimental data at a later time.

15. Patent Court Decision 2016Heo3334, decided June 15, 2017 (Appeal dismissed without hearing)

[Main Issues and Holdings] A product invention case which describes the manufacturing process deems the process necessary to identify the structure and nature of the final product

[Summary of Decision] Even though Claim 9 of the subject invention is a "product invention," the feature added by correction "manufactured by the method in Claim 1," which is the feature about "polar solvent" and the composition of "one-step impregnation by single solution," and the catalyst precursor manufactured by the limited method would be a final product "without residual organic solvent" and "without surface lamination of aluminium particles on chrome compound." Therefore, the abovementioned compositions fall under necessary requirements to identify the structure and the nature of the final product, and thus they must be included as elements to abstract similarities and differences.

16. Patent Court Decision 2014Heo4913, decided January 21, 2016 (On appeal)

[Main Issues and Holdings] Case that suggests the reasonable expectation of success as criteria to determine inventive step of cancer treatment usage invention

[Summary of Decision] Considering the special nature of the development of cancer treatment, inventive step of cancer treatment usage invention is denied only when those skilled in the art are able to have a reasonable expectation of success in discovering cancer treatment usage invention from prior arts, beyond being able to expect the possibility to discover cancer treatment usage invention from prior arts.

17. Patent Court Decision 2013Heo5759, decided April 11, 2014 (Final appeal dismissed)

[Main Issues and Holdings] Criteria of determining inventive step of method of administration limitation invention

Reflection on the Past 20 Years and Future of Patent Court 47

[Summary of Decision] The technology that limits the method of administration in the conventionally known pharmaceutical composition invention would be the technology that belongs to the public domain when beneficial effects brought about by the method of administration are not significant, which exceeds the range expected at the state of the art of those skilled in the art, and within the range of expectation that those skilled in the art can have.

18. Patent Court Decision 2011Heo4769, decided December 23, 2011 (Final appeal dismissed)

[Main Issues and Holdings] Whether to allow correction that adds pharmacological mechanism in medical usage invention (Negative)

[Summary of Decision] Since the medical usage of Claim 1 correction to the subject invention is specified as "treatment use for human allergic conjunctivitis" by Correction 1, if the active ingredient may have other new medical usage other than "therapeutic use for human allergic conjunctivitis" due to the pharmacological mechanism of "human conjunctival mast cell stabilization" added by Correction 3 or as long as the scope of medical usage of "treatment use for human allergic conjunctivitis" is not reduced, it is not necessary to add Correction 3 to the claims and the claims are not to be reduced or changed due to Correction 3. In addition, since Correction 3 simply adds the pharmacological mechanism, neither does it fall under the category of "Correcting misrepresentation" of subparagraph 2 of Article 136(1) of the Patent Act nor the case of "clarifying what is described unclear" of subparagraph 3 of Article 136(1) of the Patent Act because the medical usage invention of which characteristic is treatment use for human allergic conjunctivitis of the active ingredient is clearly recognized without adding the pharmacological mechanism.

19. Patent Court Decision 2007Heo5116, decided September 26, 2008 (Final)

[Main Issues and Holdings] Utility as a completion requirement for gene

related invention

[Summary of Decision] As far as gene-related inventions are concerned, specific utility and substantial utility must be described as credible as possible so as to meet the patentable requirements as complete invention which has industrial applicability.

20. Patent Court Decision 2011Heo7645, decided December 15, 2011 (Final)

[Main Issues and Holdings] Enablement of the requirements described in the specification in relation to gene-related chemical substance invention

[Summary of Decision] It is reasonable to understand that when it come to gene related chemical inventions, in consideration of the special nature of those inventions associated with the human body, description must be provided through specific experimental data in a detailed and clearer way enough to ensure that this invention has specific and substantial utility.

21. Patent Court Decision 2014Heo4555, decided December 4, 2014 (Appeal dismissed without hearing)

[Main Issues and Holdings] Whether or not the invention of sexual aids violates public order and good morals (Negative)

[Summary of Decision] When the patented invention is an obscene object that expresses or depicts a specific sexual part of a person in an outright manner or the exploitation of this invention is inevitably expected to involve perverted acts or only when the object of the patented invention is equivalent to the abovementioned cases to the point of violating sexual ethics, patent must not be issued to the application in accordance with Article 32 of the Patent Act.

22. Patent Court Decision 2016Heo229, decided July 8, 2016 (Appeal dismissed without hearing)

[Main Issues and Holdings] Whether a patent relating to a method of making Kimchi with water containing silver (Ag) ion is an invention having the risk of harming the public health (Affirmative)

Reflection on the Past 20 Years and Future of Patent Court 49

[Summary of Decision] It is reasonable to consider that the subject invention has a risk of harming the public health for the following reasons: 1) a long-term ingestion of silver (Ag) in large amounts can cause diseases such as argyria. 2) "silver" must not be used as raw material to manufacture, process, or cook food regardless of its content under the Korean law. (omitted) 4) meanwhile, like "silver (Ag)," "silver ion (Ag+)" must not be used for food.

23. Patent Court Decision 2008Heo8907, decided July 15, 2009 (Final appeal dismissed)

[Main Issues and Holdings] Meaning of the person who invented under Article 33(a) of the Patent Act

[Summary of Decision] Since the essence of this case is whether or not there are any parts of the process or elements of Claim 1 that can be regarded as the defendant's invention, from which perspective, the defendant simply combines other elements of the public knowledge with the trade secrets that the defendant borrowed from the plaintiff to produce Claim 1 invention, and except for the trade secrets of the plaintiff of which novelty and inventive step are recognized out of Claim 1, the novelty and inventive step of the remaining process and elements are all denied, and thus the subject invention is not considered the invention with patentable requirements met, and there must be nothing that the plaintiff has contributed to Claim 1 invention and therefore, the defendant's claim that the subject invention is not the untitled person's application in that the overall compositions of Claim 1 invention and the trade secrets of the plaintiff are different is without merit.

24. Patent Court Decision 2016Heo3051, decided September 30, 2016 (Appeal dismissed without hearing)

[Main Issues and Holdings] Whether to violate the first-to-file rule by prior arts of subordinate concept (Affirmative)

[Summary of Decision] Claim 3 of the Prior Art may be a subordinate

concept of Claim 3 of the subject invention and thus, it is reasonable to perceive that both inventions are under Article 36(1) of the Patent Act.

25. Patent Court Decision 2010Heo5888, decided February 15, 2011 (Final appeal dismissed)

[Summary of Decision] Interest to raise petition for invalidation of correction after administrative trial decision on invalidation was confirmed

[Main Issues and Holdings] Regarding the patented invention where the plaintiff raised petition for invalidation of correction, invalidation decision by IPTAB that invalidated registration was rendered under 2010dang154 on December 20, 2010 and was confirmed as it was and thus, this patented invention should be considered not to exist in the first place. Therefore, since the interest to seek revocation of the administrative trial decision which dismissed the plaintiff's petition for invalidation of correction disappeared, the petition raised in this case became improper.

26. Patent Court Decision 2015Heo8226, decided June 17, 2016 (Appeal dismissed without hearing)

[Main Issues and Holdings] In the case where petition for correction is raised in the trial on invalidation, the scope of revocation of administrative trial by the nature of inseparability of correction (Revoked in entirety)

[Summary of Decision] In the administrative trial decision on this case, the plaintiff's claim that seeks invalidation of Claims 3, 4, and 5 on the correction invention is without merit, but the plaintiff's claim that seeks invalidation of the Claim 1 on the correction invention has grounds, which makes this claim accepted, and as long as this claim is accepted, under the above legal principle invalidation of the petition for invalidation that must be confirmed in this case is unavoidable. (omitted) Then, although the petition for correction at issue is directly related to Claim 1, Claims 3 or 5 are the subordinate claims that cite Claim 1, and as long as this is the case, the petition for correction at issue covers not only Claim 1

Reflection on the Past 20 Years and Future of Patent Court 51

but also Claims 3 or 5, and thus, invalidation of Claims 3 or 5 must be decided together with the petition for correction at issue and as a result, the administrative trial decision on this case must be revoked entirely.

27. Patent Court Decision 2016Heo21, 45 (cases consolidated), decided March 16, 2017 (Final appeal dismissed)*

[Main Issues and Holdings] The meaning of the "period required due to a cause attributable" when calculating the extension of duration

[Summary of Decision] Article 91(2) of the old Patent Act excludes the period required due to a cause attributable to the patent owner from the period when the patented invention cannot be exploited, and the "period required due to a cause attributable" refers to the actual period of delay due to the cause attributable to the patentee for the permit and such under the Pharmaceutical Affairs Act, and in other words, the period when a considerable causal relationship between the fault of patentee and the permit and such under the Pharmaceutical Affairs Act is recognized.

28. Patent Court Decision 2016Heo9011, decided December 21, 2017 (Final appeal dismissed)**

[Main Issues and Holdings] The scope of invention subject to extension of duration

[Summary of Decision] Considering the purpose of the old Patent Act, the purpose of mandate and the history of amendment based on the literal meaning of the mandate clause and the provision of the enforcement decree at issue, it is reasonable to consider that the medicine of the mandate clause at issue has been approved for the first time as a drug which shows different treatment effects from those of existing licensed

* The decision was rendered by the special court where the Chief Judge of the Patent Court was in charge of the presiding judge and the two High Court Presiding Judges was in charge of associate judges [The purpose of the decision was the same as those rendered on the same day including 2016Heo4498, 4504(consolidated), 4511(consolidated), 5620(consolidated)].

** Decisions 2016Heo9028 and 2016Heo9035 decided on the same day have the same purpose.

medicines and at the same time has the substance in a new structure of which part shows the same treatment effects as those of existing licensed medicines as an active ingredient. (omitted) In view of the general nature of the geometric isomers and the differences in the action and effects of each active ingredient, it is reasonable to perceive that the drug at issue has been approved for the first time as a drug which has the effects of treating chronic hand eczema different from those of previously licensed drug and at the same time has the substance in a new structure of which part shows the same treatment.

Design

29. Patent Court Decision 2014Heo2184, decided June 20, 2014 (Final appeal dismissed)***

[Main Issues and Holdings] Extent to which identical designs are affected by novelty loss exception

[Summary of Decision] Even if novelty loss exception is claimed only for the design known at the initial time, it is necessary to make the claim effective to the same designs that continue to be publicly known and thus, even if the design applicant claims the novelty loss exception only for the initially known design, it should be interpreted that the novelty loss exception rule applies to the remaining known designs to the extent that the design is identical.

Trademark

30. Patent Court Decision 2014Heo2344, decided September 19, 2014 (Final appeal dismissed) Final rejection

[Main Issues and Holdings] Distinctiveness of a trademark combining a

* Decision 2016Heo7671 rendered by the Patent Court on June 15, 2017 (final) in relation to Article 30 of the Patent Act has the similar purpose.

** Decision 2016Heo7671 rendered by the Patent Court on June 15, 2017 (final) in relation to Article 30 of the Patent Act has the similar purpose.

dimensional shape, figure, word, etc.

[Summary of Decision] Distinctiveness of a mark consisting of a dimensional shape, figure, word, etc. must be determined based on the combination thereof instead of its dimensional shape alone. Distinctiveness of a trademark which combines a non-distinctive dimensional shape with a distinctive figure, word, etc. and is used to identify the source of product is recognized.

31. Patent Court Decision 2016Heo8261, decided March 17, 2017 (Final)

[Main Issues and Holdings] Distinctiveness of a composite trademark consisting of an adjective and a noun

[Summary of Decision] In the case of a composite trademark consisting of an adjective and a noun that the adjective modifies, the noun part in principle can become an essential part, but the noun and the adjective are combined and may form a new word having a unique meaning or a new idea or they may be recognized and used only as an entity and thus serve only as a distinctive mark and thus, it cannot be concluded that the noun is always an essential part. In this case, which part becomes an essential part in a composite trademark should be determined by comprehensively considering the following matters: not only the whole composition and the form of the composite trademark but also which part of the composite trademark is distinctive and takes up a higher importance in the composition of the trademark in relation to the designated good, which part of the composite trademark has a relatively strong distinctiveness when the noun and the adjective are both distinctiveness, whether the noun and the adjective are combined in a way that is so inseparable that they are deemed unnaturally combined in real trade, individual composition, type and relative importance of each part out of the entire composition such as the perception and the name of the designated good that are used in real trade, relative distinctiveness compared to the other components, the status and the degree of the combination of them, the relationship with the designated good, and the

actual situation of trade.

32. Patent Court Decision 202Heo2197, decided August 23, 2012 (Final appeal dismissed)

[Main Issues and Holdings] Remuneration of using the service mark

[Summary of Decision] It is reasonable to assume that the use of service mark is an act of providing services at a cost or an act accompanied by it under the Trademark Act.

33. Patent Court Decision 2009Heo7314, decided February 12, 2010 (Appeal dismissed without hearing)

[Main Issues and Holdings] "Substantial care" in the case of invalidation due to misunderstanding and confusion of licensee

[Summary of Decision] The "substantial care" prescribed in condition item 9 of Article 73(1) of the Trademark Act is not satisfied by just "warning against misunderstanding and confusion" and effective and regular supervision or reporting on the usage status of the trademark has been carried out and thereby the licensee has been under the effective control of the trademark owner or such relationship should be recognized.

Civil appeal

34. Patent Court Decision 2017Na1001, decided November 10, 2017 (On appeal)

[Main Issues and Holdings] Whether or not the patent exhaustion of process invention is recognized (Affirmative)

[Summary of Decision] The recognition of patent exhaustion by the assignment of an object depends on whether the object actually realizes the patented invention and whether the assignment is legitimately made by a patentee or such a competent person, and it is irrelevant to whether the patented invention is an object invention or process invention and thus, as long as there is no special circumstances, in the case of process invention, when the assignment is made legitimately, the patent

is exhausted and therefore, it is reasonable to assume that the effects of the patent right do not reach the use of the object afterwards.

35. Patent Court Decision 2016Na1295, decided March 23, 2017 (Appeal dismissed without hearing)

[Main Issues and Holdings] Whether to return the payment as unjust enrichment when some of the claims are confirmed invalid under ownership transfer agreement (Affirmative)

[Summary of Decision] Impossibility of performance of the contract at issue was not attributable to the plaintiff and defendant and thus the plaintiff is obliged to return the profit equivalent to royalty as unjust enrichment earned by exploiting the subject invention until December 4, 2014 when Claim 8 invention was confirmed invalid.

36. Patent Court Decision 2017Na1438, decided June 23, 2017 (Appeal dismissed without hearing)

[Main Issues and Holdings] The res judicata and the contract of good faith between the partial claim and the remainder claim of compensation for employee invention

[Summary of Decision] In the prior lawsuit over compensation for employee invention, the plaintiff explicitly claimed partial amount but the amount that was recognized fell short of the partial amount claimed by the plaintiff and the plaintiff was partially lost, and in this case, the res judicata of the prior lawsuit does not affect the later lawsuit which claims the remaining amount, and the claim for the remaining amount does not violate the principle of utmost good faith contract either.

37. Patent Court Decision 2016Na1899, decided November 30, 2017 (Final)*

[Main Issues and Holdings] Factors to evaluate the contribution rate of exclusive rights in calculating compensation for employee invention

* The case that recognized the compensation for employee invention eight times higher than in the first trial

[Summary of Decision] Considerably high degree of technological innovation of employee invention, and increased sales due to the exploitation of the employee invention were recognized as factors to highly evaluate the contribution rate of exclusive rights. On the other hand, competitors manufacture and sell similar products, optimization of detail process and know-hows necessary to produce competitive products have long been pursued while expanding manufacturing capacities and securing quality and yield competitiveness and such were recognized as factors that limit highly evaluating the contribution rate.

38. Patent Court Decision 2016Na1691, decided June 29, 2017 (Appeal dismissed without hearing)

[Main Issues and Holdings] Distinctiveness as unfair competition act · reputation damaging act

[Summary of Decision] An act of doing damage to reputation under subparagraph c of Article 2(1) of the Unfair Competition Prevention and Trade Secret Protection Act is an act that damages good images and values attached to a certain mark at a famous level by using it for services having a negative image and in order for the distinctiveness or reputation of such marks to be damaged, that mark must not be always used for services of similar type, similarity or competing relation.